



The School Board of Miami-Dade County, Florida
PROCUREMENT MANAGEMENT SERVICES
 1450 NE 2nd Avenue, Ste. 650, Miami, Florida 33132
 305-995-4288
Bidder Qualification Form

INVITATION TO BID (ITB)

DUE DATE: Bids due at or before Tuesday, May 4, 2021 at 1:00 p.m. Eastern Time (ET) at the School Board Administration Building.

****DUE TO SOCIAL DISTANCING GUIDELINES PLEASE REFER TO ATTACHMENT 16**

Check Addenda for any revised opening dates before submitting your bid. **Bid(s) received after the date and time stated above shall not be considered for award.** Faxed and/or emailed bids are not allowed and will not be considered for award.

ITB NO.:
ITB-20-033-DP

RELEASE DATE:
April 15, 2021

PURCHASING AGENT:
Delvin Padilla

BID TITLE:
Telephone Equipment and Repair

SECTION 1 - BIDDER ACKNOWLEDGEMENT

THIS SECTION MUST BE COMPLETED IN ITS ENTIRETY INCLUDING THE SIGNATURE OF AN AUTHORIZED REPRESENTATIVE WHERE INDICATED BELOW AND SUBMITTED WITH THE BID. FAILURE TO PROVIDE THIS DOCUMENT, WITH THE BID, WILL RESULT IN BID BEING CONSIDERED NON-RESPONSIVE.

Bidder's Name and state "Doing Business As", where applicable:

"REMIT TO" ADDRESS FOR PAYMENT: If payment(s) is/are to be mailed to address other than as stated on left, please complete section below.
☐ Check this box if address is the same as stated on the left.

Address:

P.O. Box:

City:

City:

State:

Zip Code:

State:

Zip Code:

Telephone Number:

Sales Contact:

Sales E-Mail Address:

E-mail Address to Send Purchase Orders:

Federal Tax Identification Number:

A. I hereby certify that I am submitting the following information as my firm's (Bidder) bid and I am authorized by Bidder to do so. Bidder agrees to complete an unconditional acceptance of the contents of all pages in this Invitation to Bid (ITB), and all appendices and the contents of any Addenda released hereto; Bidder agrees to be bound to any and all specifications, terms and conditions contained in the ITB, and any released Addenda and understand that the following are requirements of this ITB and failure to comply will result in disqualification of bid submitted; Bidder has not divulged, discussed, or compared the bid with other Bidders and has not colluded with any other Bidder or party to any other bid.

B. I certify that this bid is made without prior understanding, agreement, or connection with any corporation, firm, or person submitting a bid for the same materials, supplies, or equipment, and is in all respects fair and without collusion or fraud. I agree to abide by all conditions of this bid; and I certify that I am authorized to sign this bid for the bidder.

C. I certify that my Bidder satisfies all necessary legal requirements as an entity to do business with The School Board of Miami-Dade County, Florida.

D. I certify agreement with the School Board of Miami-Dade County Business Code of Ethics and agree to comply with this Code and all applicable School Board contracting and procurement policies and procedures. (School Board Rule 6Gx13- 3F-1.025)

E. I certify that neither I, my company, its principals, or any wholly owned subsidiary are currently debarred or in default of any bid, purchase order, or contract with the School Board or any other private or governmental entity.

F. I agree that this bid cannot be withdrawn within **90** days from date due.

Signature of Authorized Representative (Manual)

Name of Authorized Representative (Typed or Printed)

Title of Authorized Representative

E-Mail Address of Authorized Representative

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SECTION 3 - CALENDAR

ITB Release Date	Thursday, April 15, 2021
Pre-Bid Conference*	Friday, April 23, 2021 at 9:00 a.m. EST
Pre-Bid Conference Location	Via Zoom at: Meeting ID: 977 3488 4244 Passcode: 2339 One tap mobile +13017158592,,97734884244# US (Washington DC) +13126266799,,97734884244# US (Chicago)
Deadline for Questions	Friday, April 23, 2021 at 5:00 p.m. EST
Bid Due Date/Time	Tuesday, May 4, 2021 at 1:00 p.m. EST
Virtual Bid Opening Meeting:	Tuesday, May 4, 2021 at 2:00 p.m. EST
Bid Opening Location	Via Zoom at: Meeting ID: 963 8325 8347 Passcode: 978824 One tap mobile +16468769923,,96383258347# US (New York) +13017158592,,96383258347# US (Germantown) (See instructions on Attachment 16)
Projected Board Approval of Contract	Wednesday, June 23, 2021
The contact person for this ITB is: Email Address:	Delvin Padilla dpadilla@dadeschools.net

**Pre-Bid Conference attendance is not required. In compliance with Florida Statutes, Chapter 119, commonly known as the Florida Sunshine law this meeting will be recorded in its entirety.*

SECTION 4 - INSTRUCTIONS TO BIDDERS

Board policies may be accessed at: <http://www.dadeschools.net/schoolboard/rules/>

CONE OF SILENCE

The School Board of Miami-Dade County, Florida ("Board") enacts a Cone of Silence from issuance of a solicitation and shall terminate at the time the item is presented by the Superintendent to the appropriate Board committee immediately prior to the Board meeting at which the Board will award or approve a contract, reject all bids or responses, or take any other action that ends the solicitation and review process. All provisions of School Board Policy 6325 apply.

A. "Cone of silence" means a prohibition on any communication regarding a particular Request for Proposals (RFP), bid, invitation to bid, or other competitive solicitation between:

1. any person who seeks an award, including a potential vendor or vendor's representative, an employee, partner, director, or officer of a potential vendor, or consultant, lobbyist, or actual or potential subcontractor or sub-consultant of a vendor, or any other individual acting through or on behalf of any person seeking an award; and
2. any School Board member or the member's staff, the Superintendent, deputy superintendent and their respective support staff, or any person appointed by the Board to evaluate or recommend selection in the competitive procurement process.

B. A cone of silence shall be applicable to each RFP, bid, invitation to bid, or other competitive solicitation during the solicitation, review, and Board action of bid proposals as appropriate. At the time of issuance of the solicitation, the Superintendent shall provide public notice of the cone of silence and written notice, including electronic communication, to the Board, District staff and any other person involved in the review, evaluation, recommendation, approval, rejection, or award of the responses as appropriate. The Superintendent shall include in any advertisement and public solicitation for goods and services a statement disclosing the requirements of this section.

C. For unsolicited public-private partnership proposals, the cone of silence shall be imposed from the time the proposal is received in accordance with Policy 6327, Public-Private Partnerships and Unsolicited Proposals.

D. The cone of silence shall terminate at the time the item is presented by the Superintendent to the appropriate Board committee immediately prior to the Board meeting at which the Board will award or approve a contract, reject all bids or responses, or take any other action that ends the solicitation and review process

I. PREPARATION OF BIDS

A. **BIDDER QUALIFICATION FORM** qualifies the Bidder and the bid and must be completed and submitted as page 1 of the bid.

1. **PERFORMANCE SECURITY** shall not be submitted with the bid. The form of performance security the Bidder will submit when required to do so, must be furnished and shall be made to The School Board of Miami-Dade County, Florida.

2. **BIDDER CERTIFICATION AND IDENTIFICATION:** Bid must contain an original manual signature from an authorized representative. An unsigned bid will be considered non-responsive.

B. **INSTRUCTIONS TO BIDDERS:** Defines conditions of the bid.

1. **ORDER OF PRECEDENCE:** Any inconsistency in this bid shall be resolved by giving precedence in the following order:

- A. Specifications
- B. Special Conditions
- C. Instructions to Bidders

C. **BID PROPOSAL FORM:** Defines requirement of items to be purchased, and must be completed and submitted. The Bidder

should indicate his/her name in the appropriate space on each page.

1. **ITEM SPECIFICATIONS:** Describes technical, performance, and packaging requirements for every bid line item. Specifying a certain brand, make or manufacturer is to denote the quality, type, and standard of the article desired. Articles offered must be new merchandise only, of equal or superior grade. On blank lines provided, the Bidder is requested to insert the brand name, manufacturer's number and other information necessary to sufficiently identify article offered. Failure to do so may prevent consideration of the item. Also, refer to paragraph X. Packaging.

2. **PRICES** are requested in units of quantity specified in the bid specifications. In case of a discrepancy in computing the total amount of bid, UNIT PRICE quoted will govern. All prices bid shall include delivery F.O.B. destination, freight prepaid (Bidder pays and freight charges. Bidder own goods in transit and files any claims) and shall include all cartage, drayage, packing, etc., delivered to and unloaded at the receiving station at the site designated in bid and there received by the designated agent of the Board.

3. **TAXES:** The Board does not pay Federal Excise and State taxes on direct purchases of tangible personal property. The applicable tax exemption number is shown on the purchase order. This exemption does not apply to purchases of tangible personal property made by Bidder who use the tangible personal property in the performance of contracts for the improvement of Board-owned real property as defined in Chapter 192 of the Florida Statutes.

II.

SUBMITTING OF BIDS

A. Bids must be submitted on forms furnished by the Board, in compliance with the bid submission requirements set forth under Section 5.3. Bid submissions must be clearly marked with bid number, bid title and bid opening date.

B. **ERASURES OR CORRECTIONS:** When filling out the bid proposal form, Bidders are required to complete bid proposal in ink.

1. Use of pencil is prohibited.
2. All changes must be crossed out and initialed in ink.

Those bids for individual items that do not comply with items 1 and 2 above will be considered non-responsive for that item(s).

C. **PLACE, DATE AND HOUR:** Electronic submission, U.S. Mail, Courier/Express Service, or deposited in the BID BOX in accordance with the bid submittal requirements set forth under Section 5.3 and Attachment 16. Bids received after the date and hour specified in the BIDDER QUALIFICATION FORM will not be considered.

D. **PUBLIC ENTITY CRIMES:** Section 287.133(2)(a) Florida Statute, as currently enacted or as amended from time to time, states that a person or affiliate who has been placed on the convicted vendor list following a conviction for a public entity crime may not submit a bid on a contract to provide any goods or services to a public entity, may not submit a bid on a contract with a public entity for the construction or repair of a public building or public work, may not submit bids on leases of real property to a public entity, may not be awarded or perform work as a contractor, supplier, subcontractor, or consultant under a contract with any public entity, and may not transact business with any public entity in excess of the threshold amount provided in Section 287.017, for CATEGORY TWO [currently \$25,000] for a period of 36 months from the date of being placed on the convicted vendor list.

E. **SUBMITTING A "NO BID":** If not submitting a bid at this time, return the form entitled statement of "No Bid". Failure to respond,

either by submitting a bid or the statement of "No Bid" form for three consecutive times, may result in the company being removed from the School Board's bid list.

- F. **AVAILABILITY OF BID INFORMATION:** Immediately following the public opening, bids may be read, upon request, and then compiled in a tabular form, a copy of which will be available for examination in Procurement Management Services.

- G. **TYPE OF BUSINESS ORGANIZATION AND AUTHORITY OF SIGNATORY:** Indicate type of business organization: For example, Partnership, Limited Partnership, Limited Liability Company, Corporation, etc. If a bid is submitted by a corporation, provide documentation that the corporation is active and authorized to do business in the State of Florida, and that its corporate status shall remain active and unchanged at the time of award of bid. As to other types of business organizations, please provide any and all documentation relating thereto, including without limitation, verification that the party signing this Bid is fully authorized and empowered to do so on behalf of Bidder. In addition, set forth name(s) and title of any and all parties who are authorized to contract on behalf of Bidder.

- H. **MISSING INFORMATION.** Respondents who do not meet all the documentation requirements for the ITB may be contacted to submit the missing information within 2 business days. If the District requests missing documentation and does not receive the documents within the stated deadline, incomplete or noncompliant bids may be disqualified.

III. CANCELLATION OF BIDS OR REQUEST FOR PROPOSALS

An invitation for bids may be canceled, in whole or in part, as may be specified in the solicitation, when it is in the best interest of the Board. The reasons shall be made a part of the master bid file.

- A. Prior to opening, a solicitation may be canceled in whole or in part, prior to the date and hour specified in the Bidder Qualification Form for receipt of bids, when the Chief Procurement Officer, Procurement Management Services, determines in writing, that such action is in the best interest of the Board for reasons including, but not limited to:

1. The Board no longer requires the supplies, services, or construction;
2. The Board no longer can reasonably expect to fund the procurement;
3. A review of a valid protest filed by a Bidder as may be determined by the administrative staff; or
4. Proposed amendments to the solicitation would be of such magnitude that a new solicitation is desirable.

- B. When a solicitation is canceled prior to opening, notice of cancellation shall be posted on the Board's website. Any bids or proposals received for the canceled solicitation shall be returned to the Bidder unopened.

The notice of cancellation shall:

1. Identify the solicitation;
2. Briefly explain the reason for cancellation; and
3. Where appropriate, explain that an opportunity will be given to compete on any future re-solicitation for procurements of similar supplies, services, or construction.

IV. CHANGE OR WITHDRAWAL OF BIDS

- A. **PRIOR TO BID OPENING:** Should the Bidder desire to change or withdraw his/her bid, he/she shall do so in writing. This communication is to be received by the District Director, of Procurement Management, Room 650, School Board Administration Building, prior to date and hour of bid opening. The Bidders name, the bid number, the bid title and the date the bid is due must appear on the envelope.

- B. **AFTER BID OPENING:** After bids are opened, they may not be changed, nor withdrawn, for 90 days after the determined opening date, unless otherwise specified on the "BIDDER QUALIFICATION FORM."

V.

PROTESTS

A Bidder, who wishes to file a bid protest, must file such notice and follow procedures prescribed by F.S. 120.57(3) and Bylaw 0133, for resolution.

Protest of Specifications

Any notice of protest of the specifications contained in an Invitation to Bid (ITB) or Request for Proposal (RFP) or Invitation to Negotiate (ITN) shall be filed accordance with Board Rule 6320, Bylaw 0133.

For a protest of the specifications contained in an Invitation to Bid (ITB) or in a Request for Proposals (RFP) or Invitation to Negotiate (ITN), the Notice of Protest shall be filed in writing within seventy-two (72) hours after the posting of a solicitation. The Formal Written Protest shall be filed within ten (10) calendar days after the date the notice of protest is filed. Failure to file a Notice of Protest or failure to file a Formal Written Protest shall constitute a waiver of proceedings under this rule. The Formal Written Protest shall state with particularity the facts and law upon which the protest is based. Saturdays, Sundays, and legal holidays shall be excluded in the computation of the seventy-two (72) hour time period provided by this paragraph.

Posting the Bond

The protesting party shall post a bond in a form consistent with F.A.C. Rule 28-110.005(2). A notice of decision or intended decision shall contain this statement: "Failure to file a protest within the time prescribed in F.S. 120.57(3), or failure to post the bond or other security required by law within the time allowed for filing a bond shall constitute a waiver of proceeding under F.S. Chapter 120."

- A. **Bond:** Commodities (Other than Lease of Space) and Contractual Services (Including Professional Services and Insurance) – Pursuant to F.S. 287.042(2)(c), any person who files an action protesting a decision or intended decision pertaining to a solicitation or contract award shall post with the Board, at the time of filing the formal written protest, a bond secured by an acceptable surety company in Florida, payable to The School Board of Miami-Dade County, Florida, in an amount equal to one percent (1%) of the Board's estimate of the dollar value of the proposed contract.

1. The Board shall provide the estimated contract amount to the protestor within seventy-two (72) hours (excluding Saturdays, Sundays, and holidays when the Board administrative office is closed) after the filing of the Notice of Protest. The estimated contract amount is not subject to protest under this policy or F.S. 120.57(3). In lieu of a bond, the Board may accept a cashier's check or money order in the amount of the bond.

2. The bond shall be conditioned upon the payment of all costs and charges which may be levied against the protestor in the administrative hearing in which the action is brought and in any subsequent appellate court proceeding.

3. Pursuant to F.S. 287.042(2)(c), if, the Board prevails in the administrative hearing process and any appellate court proceedings, it shall be entitled to recover all costs and charges which are included in the final order or judgment, excluding attorneys' fees. Upon payment of such costs and charges by the person protesting the decision or intended decision or contract award, the bond, cashier's check, or money order shall be returned to the protestor. If the protestor prevails, the protestor may recover from the Board the costs and charges which are included in the final order or judgment, excluding attorneys' fees.

- B. **Bond:** Competitive Bids for Lease of Space -- Pursuant to F.S. 255.25(3)(c), any person who files an action protesting a decision or intended decision pertaining to a competitive bid for space to be leased by the Board shall post with the Board, at the time of filing

the formal written protest, a bond payable to the Board in an amount equal to one percent (1%) of the estimated total rental of the basic lease period or \$5,000, whichever is greater. The bond shall be conditioned upon the payment of all costs which may be levied against him/her in the administrative hearing in which the action is brought and in any subsequent appellate court proceeding. If the Board prevails in the administrative hearing process and any appellate court proceedings, it shall recover all costs and charges, which are included in the final order or judgment, excluding attorneys' fees. Upon payment of such costs and charges by the person protesting the award, the bond shall be returned to him/her. If the person protesting the award prevails, the bond shall be returned to that person and she/he shall recover from the Board the costs and charges which are included in the final order or judgment, excluding attorneys' fees.

- C. **Bond:** Construction Purchasing – Construction purchasing is separately governed by Board policy, and persons protesting competitive procurement related to educational facilities shall be required to post a bond in the amount specified in F.S. 255.0516, which also governs recovery of fees and costs including attorneys' fees.
- D. **Staying the Procurement Process** – Upon timely receipt of the formal written protest petition, and posting of the bond, the solicitation or contract award process shall be stayed until the protest is resolved by final agency action, unless the Board sets forth, in writing, particular facts and circumstances which require the continuance of the solicitation or contract award process in order to avoid an immediate and serious danger to the public health, safety, and welfare.

Protest of Bid Award

Any person who is adversely affected by the Board's decision or intended decision, shall file a Notice of Protest in writing with the Clerk of the Board, who shall maintain an office in the Board Administration building, within seventy-two (72) hours after the posting of the bid tabulation or after receipt of the notice of the Board's decision or intended decision and shall file a Formal Written Protest within ten (10) calendar days after filing the Notice of Protest. The protesting Bidder shall also be required to post a bond, consistent with this rule. Failure to file a Notice of Protest or failure to file a Formal Written Protest shall constitute a waiver of proceedings under F.S. Chapter 120.57. The formal written protest shall state with particularity the facts and law upon which the protest is based. Saturdays, Sundays, and legal holidays shall be excluded in the computation of the seventy-two (72) hour time period provided by this paragraph.

The Formal Written Protest will be reviewed by Procurement Management Services, who will offer the protesting Bidder the opportunity to meet and discuss the merits of the protest. If the protest is not resolved, the matter may be referred for proceedings, pursuant to F.S. 120.569 and 120.57. Petitions for hearing on protests pursuant to F.S. 120.569 and 120.57 must be filed in accordance with Board Bylaw 0133 on quasi-judicial proceedings.

The "Notice of and/or formal written Protest" shall be filed with:

The Office of the School Board Clerk Miami-Dade County Public Schools
1450 N.E. Second Avenue, Suite #311 Miami, Florida 33132
Phone: (305) 995-1440
Fax: (305) 995-1448
E-Mail: Dlopiz@dadeschools.net
celiarubio@dadeschools.net

VI. AWARDS

- A. **RESERVATION FOR REJECTION OR AWARD:** The Board reserves the right to reject any or all bids, to waive irregularities or technicalities, and to request rebids. The Board reserves the right to award on an individual item basis, any combination of items, total low bid or, if an alternate bid is accepted, on such terms as are specified for the alternate bid, whichever manner is in the best interest of the Board.

The Board reserves the right to utilize other governmental contracts, if in the best interest of the Board.

- B. **NOTIFICATION OF INTENDED ACTION** will be posted on the Board's website no later than the Friday preceding a regularly scheduled Board meeting.
- C. **OFFICIAL AWARD DATE:** Awards become official upon the Board's formal approval of the award.
- D. **TERMINATION FOR CONVENIENCE:** The Board reserves the right to terminate this Agreement at any time and for any reason upon giving thirty (30) days' notice to the other party. If said Agreement should be terminated for convenience as provided herein, the Board will be relieved of all obligations under said Agreement. The Board will only be required to pay that amount of the Agreement actually performed to the date of termination. Upon such payment, both parties shall be relieved of any further obligations under this Agreement.
- E. **TERMINATION OF AGREEMENT:** In addition to the above, the Board may terminate this Agreement upon thirty (30) days advance written notice to the Awarded Bidder, for default of Awarded Bidder, or due to lack of, or cancellation of, grant funds made available to the Board by a Federal grantor agency. Upon receipt of a notice of termination, the Awarded Bidder shall cease incurring additional obligations under this Agreement. However, the Board shall allow the Awarded Bidder to incur all necessary and proper costs, which the Awarded Bidder cannot reasonably avoid during the termination process. Each payment obligation of the Board created by this Agreement is conditioned upon the availability of funds that are appropriate or allocated for the payment of services or goods. If such funds are not allocated and available, this Agreement may be terminated by the Board at the end of the period for which funds are available. The Board shall notify the Awarded Bidder at the earliest possible time before such termination. No penalty shall accrue to the Board in the event this provision is exercised, and the Board shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. Any individual or corporation or other entity that attempts to meet its contractual obligations with the Board through fraud, misrepresentation or material misstatement, shall have its Agreement with the Board terminated upon receiving notice of the attempted fraud as determined by the Board.
- F. **PURCHASE ORDERS** sent to Awarded Bidders are the official notification to deliver materials described therein; and the time allowed for delivery begins with the date of the purchase order. In the event that the Awarded Bidder fails to deliver the materials in accordance with the terms and conditions of the bid and purchase order, the Bidder shall be considered to be in default of the Agreement and subject to the default provisions stated in Section VI. G.
- G. **DEFAULT:** A Bidder who fails to perform according to the terms of the Agreement (bid) shall be considered in default. In the event of default, which may include, but is not limited to poor performance and/or non-performance, the contractor Disciplinary Review Committee may recommend disbarment or suspension pursuant to Board Policy 6320.04.
- H. **BID DOCUMENTS:** The intent of the bid documents is to include only the written requirements for materials, equipment, systems, standards and workmanship necessary for the proper execution and completion of the work by the Bidder. The bid documents shall not be construed to create an entitlement to any other scope of work except as specified herein.
- I. **DEBARMENT:** Pursuant to Board Policy 6320.04 Contractor Debarment Procedures – Debarred contractors are excluded from conducting business with the Board as agents, representatives, partners, and associates of other contractors, subcontractors or individual sureties.

- J. **IDENTICAL PRICES:** When identical prices are received from two or more Bidders and all other factors are equal, priority for award shall be given to the vendor that has preference for businesses implementing a drug-free workplace in accordance with School Board Policy 6320.

VII. PERFORMANCE SECURITY (FOR SUCCESSFUL BIDDERS ONLY)

- A. **PURPOSE:** A performance bond or check may be required to guarantee performance.
- B. **BONDING COMPANY:** Performance Bonds shall be written through a reputable and responsible surety bond agency licensed to do business in the State of Florida and with a surety company or corporation and shall be made to The School Board of Miami-Dade County, Florida, meeting both of the following specifications:

1. Awards Greater than \$500,000

A minimum rating in the latest revision of Best's Insurance Reports of:

<u>Contract Amount</u>	<u>Minimum Rating by A.M. Best</u>
\$500,000.01 to \$2,500,000	None
\$2,500,000.01 to \$5,000,000	B+ or NA-3
No Minimum Class	
\$5,000,000.01 to \$10,000,000	A- Class IV
\$10,000,000.01 or more	A- Class V

Current certificate of authority as acceptable surety on Federal Bonds in accordance with the latest edition of the United States Treasury Department Circular 570 entitled "Companies Holding Certificates of Authority as Acceptable Sureties on Federal Bonds and as Acceptable Reinsuring Companies" shall be accepted for an amount not exceeding the underwriting limitation thereon.

2. Awards of \$500,000 or Less

Bonds shall be written with a surety company or corporation meeting the qualifications as set forth in Paragraph VII.B. above or the qualifications set forth in section 287.0935, Florida Statutes.

- C. **AMOUNT:** When required as defined herein, the firm or individual(s) to whom an award has been made shall execute and deliver to The School Board of Miami-Dade County, Florida, a Performance Bond, Cashier's/Certified Check, or equal.

- Awards less than \$200,000 shall be exempt from performance security.
- Performance security shall not be required, unless otherwise defined in the bid specifications. If performance security is required, it shall equal 100% of the award amount.

- D. **RELEASE OF PERFORMANCE SECURITY:** Return to the Awarded Bidder of his/her cash security, or notification to the Awarded Bidder and the bonding company to cancel the performance bond, will be made when all goods/services have been accepted and invoices have been approved for payment.

VIII. SAMPLES TESTING AND EVALUATION

In order to be considered for award, brands bid "As Equal" or "Equivalent" to the specified brands need to be tested/evaluated to determine compliance with bid specifications.

When bid samples are required, the Board will notify Bidder to submit samples of the items bid in accordance with the following procedures:

- A. All samples must be identified with the Bidder's name, bid number, item number, and manufacturer's product name and number. When non-compliance with this requirement is noted, said item may be

considered as being unidentifiable and may not be eligible for consideration in the award recommendation.

- B. Samples, product technical specification sheets, and all required supporting documentation, are to be delivered to the Materials Testing and Evaluation Department within 48 hours of request from the Miami-Dade County Public Schools ("M-DCPS") Procurement Management Services department between 8:30 a.m. and 3:00 p.m., Monday through Friday, unless otherwise stated in the Special Conditions of the bid. If the Bidder does not submit samples and associated documents by the indicated date and time, the bid submitted for that item will not be considered for award.

- C. The Materials Testing and Evaluation Department is located at:

MIAMI-DADE COUNTY PUBLIC SCHOOLS
MATERIALS TESTING AND EVALUATION
7040 West Flagler Street
Miami, Florida 33144
Telephone Number: 786-275-0780

Board will not be responsible for samples sent to a location other than the location mentioned in the bid.

- D. Bidder must obtain, from Materials Testing and Evaluation, a signed receipt acknowledging delivery of samples. Bidder shall include a self-addressed, stamped envelope for return of sample receipt when submitting samples by mail or delivery service. The Bidder will receive the original copy of the receipt and the duplicate copy will remain with the Board receiving department as the file copy. Bidder shall be solely responsible for delivery of samples and for retaining sample delivery receipts, which must be presented in any dispute regarding receipt of bid samples.

- E. **PAYMENT FOR SAMPLES:** The Board will buy no samples and will assume no cost incidental thereto.

- F. **RETURN OF SAMPLES:** Samples not destroyed in testing may be claimed by unsuccessful bidders 14 days after bid award date and by Awarded Bidders 14 days after final payment; but the Board will assume no responsibility for samples not claimed within the time specified, and it will pay for no samples damaged in testing. No perishable samples submitted for testing and evaluation will be returned.

- G. **TESTING AND EVALUATION RESULTS:** The Materials Testing and Evaluation Department will report to the Board the bid specification compliance evaluation results corresponding to submitted samples of brands bid "As Equal" or "Equivalent" to the listed specified brands.

IX.

SUBSTITUTIONS

Should the Bidder find it necessary to use a material, equipment, product or system other than specified, the Bidder shall secure from the Board, through Procurement Management Services, written approval for the use of the alternate materials, equipment, product or system. The Board is not obligated to approve requests for substitutions and has the discretion to require the Bidder to provide the materials as specified in the bid documents. In no case shall the Bidder be entitled to additional time and/or money arising out of the Board's failure to approve requests for substitutions.

X.

PACKAGING

- A. If packaging is different from that specified, the Bidder must note the manner and amounts in which packaging is to be made; otherwise the Awarded Bidder shall furnish packaging as specified. All packaging, wrapping and bundling shall be adequate to ensure that materials will be received in undamaged condition. The Board assumes no responsibility for damages of any kind incurred in transit.

- B. The following identification shall be printed, stenciled or legibly written in a conspicuous location on each shipping container:

1. Bid Number and/or Purchase Order Number
2. Bidder's Name and/or Trademark
3. Name(s) of Item(s) Contained
4. Item Number (s) With Quantity(ies)

XI. PURCHASES BY OTHER PUBLIC AGENCIES

With the consent and agreement of the Awarded Bidder(s), purchases may be made under this bid by Miami-Dade County, Florida, and other governmental agencies or political subdivisions within the State of Florida. Such purchases shall be governed by the same terms and conditions stated herein. This agreement in no way restricts or interferes with the right of any State of Florida Agency or political subdivision to rebid any or all of these items.

XII. RECYCLING REQUIREMENTS

Board supports recycling and recommends the use of recycled products where possible upon notification by the Board. Bidders are requested to submit a letter, along with their bid, indicating whether each item bid and/or its packaging contains pre-consumer or post-consumer waste, and if the product and/or packaging may be recycled.

XIII. ENVIRONMENTAL PRODUCTS

Board encourages the use of environmentally safe products.

XIV. DELIVERY AND BILLING

- A. DELIVERY:** Saturdays, Sundays, and holidays excepted, deliveries shall be made as follows: Schools and Departments – 8:00 A.M. to 3:00 P.M. Merchandise shall be unloaded at the receiving station of the designated delivery point and received there by a designated agent of the Board. A delivery ticket, or one copy of the invoice, prepared as indicated below, shall accompany each delivery.
- B. RECEIVING INSPECTION AND TESTING:** Delivered items which do not fulfill all requirements will be rejected. Rejected items shall be removed and replaced promptly by the Bidder, at no cost to the Board.
- C. INVOICES:** Each invoice shall be issued by the Awarded Bidder and shall be submitted in DUPLICATE to the Accounts Payable Section, P.O. Box 01-2570, Miami, Florida 33101. Invoice delivery may also be via a PDF or WORD document email to: mdcpsvendorsstatements@dadeschools.net. To be considered for payment, each invoice must show the following information, which appears on the Purchase Order:
 1. Purchase Order Number
 2. Item Descriptions
 3. Quantities and Units
 4. Price Extensions
 5. Total price of all items on invoice
- D. PAYMENT:** Unless otherwise specified by Board, payment will be made only after delivery, authorized inspection, and acceptance. Payment will be made only to the Awarded Bidder, unless otherwise requested, in writing, by the Awarded Bidder and accepted by Board Administration. The Bidder expressly agrees that it will properly invoice for any goods or services within one year and that the failure to do so shall constitute a waiver of any right to payment.

XV. NO GRATUITY POLICY

It is the policy of Procurement Management Services not to accept gifts, gratuities, or favors of any kind, or of any value whatsoever, from vendors, members of their staffs, or families.

XVI. COMPLIANCE WITH STATE/FEDERAL REGULATIONS

- A.** All Agreements involving federal funds will contain certain provisions required by applicable sections of CFR 34, Part 80.36(l) and Part 85.510, Florida Statute 257.36, or Florida Administrative

Code Chapter 1B. The Bidder certifies by signing the bid that the Bidder and his/her principals are not presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in federally funded transactions and may, in certain instances, be required to provide a separate written certification to this effect.

- B.** By signing the bid, the Bidder shall comply with all applicable laws, ordinances, codes, rules and regulations of federal, state and local governments, if required, for performance of any work under this Bid. Bidders awarded contracts involving Federal Funds and are cost reimbursable must be in compliance with 7 CFR 210.21. Bidders awarded contracts involving Federal Funds must be in compliance with the Energy and Policy Conservation Act (42 USC 6201). Bidders awarded contracts involving the employment of mechanics, laborers, or construction work must be in compliance with 40 USC Chapter 37.
- C.** During the term of any Agreement with the Board, in the event of debarment, suspension, proposed debarment, declared ineligible or voluntarily excluded from participation in federally funded transactions, the Bidder shall immediately notify the Chief Procurement Officer, Procurement Management Services, in writing. Bidders will also be required to provide access to records, which are directly pertinent to the Agreement and retain all required records for three years after the Board, makes final payment.
- D.** For all contracts involving Federal funds in excess of \$10,000, the Board reserves the right to terminate the contract for cause, as well as for convenience, by issuing a certified notice to the Bidder.
- E.** CERTIFY REGISTRATION AND USE OF EMPLOYMENT "STATUS VERIFICATION SYSTEM": The Status Verification System, also referred to as "E-verify", only applies to construction and Professional Service Contracts using federal funds.

STATUS VERIFICATION SYSTEM

1. Each Bidder and each person signing on behalf of any Bidder certifies as to its own entity, under penalty of perjury, that the named Bidder has registered and is participating in the Status Verification System to verify the work eligibility status of the contractor's new employees that are employed in the State of Florida in accordance with Executive Order 13465.
2. The Bidder shall require that the following provision be placed in each subcontract at every tier: "The subcontractor shall certify to the main (prime or general) contractor by affidavit that the subcontractor has verified through the Status Verification System the employment status of each new employee of the respective subcontractor, all in accordance with and to comply with all applicable employee status verification laws. Such affidavit must be provided prior to the notice to proceed for the subcontractor to perform the work."
3. The Board will not consider a proposal for award, nor will it make any award where there has not been compliance with this Section.
4. Manually or electronically signing the Proposal is deemed the Bidder's certification of compliance with all provisions of this employment status verification certification required by all applicable status verification laws.

XVII. COMPLIANCE WITH LAWS

Bidders shall comply with all federal, State of Florida and local laws applicable to it and the performance of its obligations under this bid.

XVIII. BACKGROUND SCREENING REQUIREMENTS

In accordance with the requirements of Sections, 1012.465, 1012.32, and 1012.467, Florida Statutes, School Board Policies 6320 and 8475 as amended from time to time Bidder agrees that, if Bidder receives remuneration for services, Bidder and all of its employees who provide or may provide services under this Agreement will complete criminal history

checks, and all background screening requirements, including level 2 screening requirements as outlined in the above-referenced statutes and School Board Policies prior to providing services to the School Board of Miami-Dade County.

Additionally, Bidder agrees that each of its employees, representatives, agents, subcontractors or suppliers who are permitted access on school grounds when students are present, who have direct contact with students or who have access to or control of school funds must meet level 2 screening requirements as described in the above-referenced statutes, and School Board Policies.

Pursuant to the 2007 amendments to the JLA enacted by the Florida Legislature, requirements for certain fingerprinting and criminal history checks shall be inapplicable to non-instructional contracted personnel who qualify for exemption from level 2 screening requirements as provided under §1012.468, Fla. Stat. (2007). In addition, the provisions of §1012.467, Fla. Stat. (2007) are incorporated herein by reference, and any provisions of this section that may be inconsistent with, contrary to, or determined to be in conflict with §1012.467, will be superseded by said statute.

A noninstructional contractor who is exempt from the screening requirements set forth in §1012.465, §1012.468 or §1012.467, Florida Statutes, is subject to a search of his or her name or other identifying information against the registration information regarding sexual predators and sexual offenders maintained by the Department of Law Enforcement under § 943.043 and the national sex offender public registry maintained by the United States Department of Justice. Bidder will not be charged for this search. Further, upon obtaining clearance by Board, if Board deems necessary, Board will issue a Florida Public Schools Contractor Badge which shall be worn by the individual at all times while on Board property when students are present.

Bidder agrees to bear any and all costs associated with acquiring the required background screening – including any costs associated with fingerprinting and obtaining the required photo identification badge. Bidder agrees to require all its affected employees to sign a statement, as a condition of employment with Bidder in relation to performance under this Bid/RFP, agreeing that the employee will abide by the heretofore described background screening requirements, and also agreeing that the employee will notify the Contractor/Employer of any arrest(s) or conviction(s) of any offense enumerated in School Board Policies 6320 and 8475 within 48 hours of its occurrence. Bidder agrees to provide the Board with a list of all of its employees who have completed background screening as required by the above-referenced statutes and who meet the statutory requirements contained therein. Bidder agrees that it has an ongoing duty to maintain and update these lists as new employees are hired and in the event that any previously screened employee fails to meet the statutory standards. Bidder further agrees to notify the Board immediately upon becoming aware that one of its employees who were previously certified as completing the background check and meeting the statutory standards is subsequently arrested or convicted of any disqualifying offense. Failure by Bidder to notify the Board of such arrest or conviction within 48 hours of being put on notice and within 5 business days of the occurrence of qualifying arrest or conviction, shall constitute a material breach of the Agreement entitling the Board to terminate this Agreement immediately with no further responsibility to make payment or perform any other duties under this Agreement.

XIX. COMPLIANCE WITH SCHOOL CODE

Bidder agrees to comply with all sections of the Florida K-20 Education Code, Title XLVIII, Florida Statutes as it presently exists, and further as it may be amended from time to time. Further Bidder agrees that failure to comply with the Florida K-20 Education Code shall constitute a material breach of this Agreement and may result in the termination of this Agreement by the Board.

XX. CHARTER SCHOOLS

Items or Services awarded under this Agreement shall be made available to Charter Schools approved by the Board. Board is not responsible or liable for purchases that may be made by Charter Schools.

XXI. CONFLICT OF INTEREST

Former Miami-Dade County Public Schools employees, classified as Managerial Exempt Personnel, Pay Grade 22 and above, Dade County School Administrators Association, Pay Grade 47 and above, and other equivalent positions, are prohibited from personally representing another person or entity or acting as an agent or attorney for compensation in connection with any matter in which The School Board of Miami-Dade County, Florida, is interested, for two years after the Board employees' service terminates. This provision is pursuant to School Board Policies 1129, 3129, 4129 and Florida Statute § 112.313(9).

XXII. PUBLIC RECORDS LAW

Pursuant to Florida Statute, it is the practice of Board to make available for public inspection 119 and copying any information received in response to an Invitation to Bid or Request for Proposals (RFP). No action on the part of the respondent to a Bid or RFP will create an obligation of confidentiality on the part of the Board, including but not limited to, making a reference in the response to the trade secret statutes. It is recommended that potential suppliers exclude from their response any information that, in their judgment, may be considered a trade secret.

Bidder understands the broad nature of these laws and agrees to comply with Florida's Public Records Laws and laws relating to records retention. The Bidder shall keep and maintain public records required by the School Board to perform the service. The Bidder shall keep records to show its compliance with program requirements. Bidders and subcontractors must make available, upon request of the School Board, a Federal grantor agency, the Comptroller General of the United States, or any of their duly authorized representatives, any books, documents, papers, and records of the Bidder which are directly pertinent to this specific Agreement for the purpose of making audit, examination, excerpts, and transcriptions. Upon request from the School Board's custodian of public records, provide the School Board with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided in this chapter or as otherwise provided by law. Bidder shall ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of the contract if the Bidder does not transfer the records to the public agency. The Bidder shall retain all records for five (5) years after final payment is made or received and all pending matters are completed pursuant to Title 34, Sections 80.36(b)(1). Upon completion of the contract, transfer, at no cost, to the School Board all public records in possession of the Bidder or keep and maintain public records required by the School Board to perform the service. If the Bidder transfers all public records to the School Board upon completion of the contract, the Bidder shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If the Bidder keeps and maintains public records upon completion of the contract, the Bidder shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to the School Board, upon request from the School Board's custodian of public records, in a format that is compatible with the information technology systems of the School Board.

IF THE BIDDER HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE PROVIDER'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT 305-995-1128, pr@dadeschools.net, and 1450 NE 2 Avenue, Miami, Florida 33132.

XXIII. ASSIGNMENT

This Agreement may not be assigned nor may any assignment of monies due, or to become due to Bidder, be assigned without the prior written agreement of Board. If Bidder attempts to make such an assignment, such attempt shall constitute a condition of default.

XXIV. DAVIS-BACON ACT LABOR STANDARDS

This project may be funded in whole or in part under the provisions of the American Recovery and Reinvestment Act of 2009. Therefore, the Bidder shall comply with all applicable provisions of 40 U.S.C. §276a-§276a-7, the Davis-Bacon Act, as supplemented by the Department of Labor

regulations (29 C.F.R., PART 5 "Labor Standards Provisions Applicable to Contracts Governing Federally Financed and Assisted Construction").

XXV. LOBBYISTS

A. "Lobbyist" means a person, firm or corporation who is employed and receives payment from, or who contracts for economic consideration with, any principal, person or organization for the purpose of lobbying, or a person who is principally employed for governmental affairs by another person or governmental entity to lobby on behalf of that other person or governmental entity. For purposes of this rule, the term "Lobbyist" specifically includes the principal as well as any agent, officer, or employee of a principal regardless of whether they are employees of the principal whose normal scope of employment does not include lobbying activities.

B. One who is not an employee of a principal is a "lobbyist" if s/he is retained as an independent contractor or otherwise for payment or economic consideration by a person or governmental entity to lobby an agency on behalf of that person or governmental entity.

If a corporation, partnership, firm, or other business organization is retained for payment or economic consideration to lobby on behalf of another person or governmental entity, only the members, partners, associates, or employees of the entity who personally lobby on behalf of that person or governmental entity are "lobbyists."

C. The terms "payment" or "economic consideration" do not include receiving only reimbursement for actual travel, lodging, and meal expenses.

D. "Lobbying" means any oral or written communication, direct or indirect, with the Board, members of the Board, Board Committees, Board administrative assistants, Board Attorneys, or members of the District administrative staff, including site administrators and instructional staff for the purpose of doing business with the School District, the Board and/or schools, influencing any official action, non-action, or decision or attempting to obtain the good will of a Board member or employee of the School District.

XXVI. LOCAL-AND STATE VENDOR PREFERENCE

A. The School Board of Miami-Dade County, Florida adopted School Board Policy 6320.05 which gives local preference to businesses located in Miami-Dade County, Florida when evaluating the lowest responsible, responsive bid or submittal for the purchase of goods and services, professional and construction-related services, in excess of \$50,000 dollars or the current formal bidding threshold set by statute.

B. Bidders claiming local vendor preference for any bid or submittal must submit an Affidavit of Eligibility for Local Preference and a copy of its business license with their bid, quote, proposal, reply or response. Bids which fail to include the approved affidavit at the time of bid submittal will not be considered for local vendor preference. The preference status does not apply to goods or services exempted by statute, Federal laws, or procurements with funding source restrictions. Exemptions by statute are listed in Board Policy 6320.

XXVII. DISCLOSURE OF CONFLICT OF INTEREST (AFFILIATION DISTRICT COMMITTEES, TASK FORCE, ASSOCIATIONS)

The School Board of Miami-Dade County, Florida approved item H-13 at the July 2013 School Board meeting. This item will ensure that current procurement processes establish a procedure aimed at requiring offices/director of contracted vendors to make full disclosure of their relationship with any Board committees, task force, or associations. The Bidder Qualification Form will now include the clause titled "Disclosure of Conflict of Interest.

Board policies may be accessed at:
<http://www.dadeschools.net/schoolboard/rules/>

XXVIII. UNDERWRITERS' LABORATORIES

Unless otherwise stipulated in the bid, all manufactured items and fabricated assemblies shall be UL listed where such has been established by UL for the item(s) offered and furnished. In lieu of the UL listing, Bidder may substitute a listing by an independent testing **laboratory recognized by OSHA under the Nationally Recognized Testing Laboratories (NRTL) Recognition Program.**

XXIX. DISPUTES

In case of any doubt or difference of opinion as to the items to be furnished hereunder, the decision of the Board shall be final and binding on both parties.

XXX. PATENTS & ROYALTIES

The Awarded Bidder, without exception, shall indemnify and save harmless The School Board of Miami-Dade County, Florida and its employees from liability of any nature or kind, including cost and expenses for any copyrighted, patented, or unpatented invention, process, or article manufactured or used in the performance of the Agreement, including its use by The School Board of Miami-Dade patent, or copyright, it is mutually understood and agreed without exception that the bid prices shall include all royalties or cost arising from the use of such design, device or materials in any way involved in the work.

All books, manuals, films or other materials suitable for copyright or patent, regardless of means of transmission, produced as a result of the work or services performed under or in connection with this Agreement, are hereby reserved as the exclusive property of and sole ownership by The School Board of Miami-Dade County, Florida, unless and to the extent that the parties agree otherwise, as evidenced in writing and included as a part of this Agreement. Bidder shall defend, indemnify and hold the School Board and its successors and assigns harmless from and against all third-party claims, suits and proceedings and any and all damages, liabilities, costs and expenses (including reasonable attorneys' fees and court costs) incurred as a result of (i) infringement by Bidder of any third-party patent, copyright or trademark or (ii) misappropriation by Bidder of any third-party trade secret in connection with any of the foregoing. Bidder will indemnify and hold harmless the School Board from liability of any nature or kind, including costs and expenses for or on account of any copyrighted, service marked, trademarked, patented or unpatented invention, process, article or work manufactured or used in the performance of the Agreement, including its use by the School Board. If Bidder uses any design, device, materials or works covered by letters, service mark, trademark, patent, copyright or any other intellectual property right, it is mutually agreed and understood without exception that the proposal prices will include all royalties or costs arising from the use of such design, device or materials in any way involved in the work. In addition, Bidders awarded contracts involving Federal Funds are subject Rights to Invention as set forth in 37 CFR 401.

XXXI. OSHA

The Awarded Bidder warrants that the product supplied to The School Board of Miami-Dade County, Florida shall conform in all respects to the standards set forth in the Occupational Safety and Health Act of 1970, as amended, and the failure to comply with this condition will be considered as a breach of contract.

XXXII. QUALITY

All materials used for the manufacture or construction of any supplies, materials or equipment covered by this bid shall be new unless otherwise specified. The items bid must be new, the latest model, of the best quality and highest workmanship.

XXXIII. FACILITIES

Board reserves the right to inspect the Awarded Bidder's facilities at any time with prior notice", Board may use the information obtained from this in determining whether a Bidder is a responsible Bidder.

XXXIV. ASBESTOS AND FORMALDEHYDE STATEMENT

All building materials, pressed boards, and furniture supplied to Board shall be 100% asbestos free. It is desirous that all building materials,

pressed boards and furniture supplied to the School Board also be 100% formaldehyde free. Bidder, by virtue of bidding, certifies by signing bid that, if awarded this bid, only building materials, pressed boards, and/or furniture that is 100% asbestos free will be supplied.

XXXV. EXTENSION

In addition to any extension options contained herein, Board is granted the right to extend any award resulting from this bid. The extension period shall not be in excess of 90 days from (a) the termination date of an Agreement entered into as a result of this bid or (b) the termination date under any applicable period of extension under an Agreement entered into as a result of this bid. Such extension shall be upon the same price, terms and conditions as existing at the time of Board's exercise of this extension right.

XXXVI. OMISSION FROM THE SPECIFICATIONS

The apparent silence of this specification and any Addendum regarding any details or the omission from the specification of a detailed description concerning any point shall be regarded as meaning that only the best available units shall be provided and the best commercial practices are to prevail, and that only materials and workmanship of first quality are to be used. All interpretations of this specification shall be made upon the basis of this agreement.

XXXVII. PURCHASE AGREEMENT

This bid, and the corresponding Purchase Orders, will constitute the complete agreement. Board will not accept proposed terms and conditions that are different than those contained in this Invitation to Bid, including pre-printed text contained on catalogs, price lists, other descriptive information submitted or any other materials. By virtue of submitting a bid, vendor agrees to not submit to any Board employee, for signature, any document that contains terms and conditions that are different than those contained herein and that in the event any document containing any term or condition that differs from those contained herein is executed, said document shall not be binding on Board.

XXXVIII. CERTIFICATION REGARDING DEBARMENT, SUSPENSION, INELIGIBILITY OR VOLUNTARY EXCLUSION; Lower Tier Covered Transactions

Executive Order 12549, as currently enacted or as amended from time to time, provides that, to the extent permitted by law, Executive departments and agencies shall participate in a government-wide system for non-procurement debarment and suspension. A person who is debarred or suspended shall be excluded from Federal financial and non-financial assistance and benefits under Federal programs and activities. Except as provided in 85.200, Debarment or Suspension, 85.201, Treatment of Title IVHEA participation, and 85.215, Exception Provision, debarment or suspension of a participant in a program by one agency shall have government-wide effect. A lower tier covered transaction is, in part, any transaction between a participant [Board] and a person other than a procurement contract for goods or service, regardless of type, under a primary covered transaction; and any procurement contract for goods or services between a participant and a person, regardless of type, expected to equal or exceed the Federal procurement small purchase threshold fixed at 10 U.S.C.23049g) and 41 U.S.C.253(g) (currently \$100,000) under a primary covered transaction; or any procurement contract for goods or services between a participant and a person under a covered transaction, regardless of amount, under which that person will have a critical influence on or substantive control over that covered transaction. (The Board) may rely upon the certification of a prospective participant in a tier covered transaction that it and its principals are not debarred, suspended, for debarment under 48 CFR part 9, subpart 9.4, ineligible, or voluntarily excluded from the covered transaction, unless it knows that the certification is erroneous. The Board shall require participants in lower tier covered transactions, to include the certification for it and its principals in any bid submitted in connection with such lower tier covered transactions.

CERTIFICATION

- a) The prospective lower tier participant certifies, by submission of this bid, that neither it nor its principals is presently debarred, Suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any Federal department or agency.
- b) Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participants shall attach an explanation to this bid.

XXXIX. SEVERABILITY

In case of any one or more of the provisions contained in this Bid shall be for any reason be held to be invalid; illegal, unlawful, unenforceable or void in any respect; the invalidity, illegality, unenforceability or unlawful or void nature of that provision shall not affect any other provision of this Bid shall be considered as if such invalid, unlawful, unenforceable or valid provision had herein.

XL. DISTRIBUTION

It is the responsibility of all interested parties to assure they have received all necessary documents, including Addenda and have included all necessary information within their response. Board is not responsible for Bidder's failure to obtain complete bidding documents. Board reserves the right to reject any bid as non-responsive for failure to include all necessary documents or required Addenda. For information regarding the above referenced solicitation, contact the designated Purchasing Agent as stated herein.

XLI. CONFIDENTIAL RECORDS

Notwithstanding any provision to the contrary within this Agreement, any party contracting with Board under this Agreement shall fully comply with the requirements of Sections 1002.22 and 1002.221, Florida Statutes; Family Educational Rights and Privacy Act (FERPA), and any other state or federal law or regulation regarding the confidentiality of student information and records. Each such party agrees, for itself, its officers, employees, agents, representatives, contractors or subcontractors, to fully indemnify and hold harmless Board and its officers and employees for any violation of this section, including, without limitation, defending Board and its officers and employees against any complaint, administrative or judicial proceeding, payment of any penalty imposed upon Board, or payment of any and all costs, damages, judgments or losses incurred by or imposed upon Board arising out of a breach of this covenant by the party, or an officer, employee, agent, representative, contractor, or sub-contractor of the party to the extent that the party or an officer, employee, agent, representative, contractor, or sub-contractor of the party shall either intentionally or negligently violate the provisions of this section or of Sections 1002.22 and/or 1002.221, Florida Statutes.

Awarded Bidder agrees that it may create, receive from or on behalf of Board, or have access to, records or record systems that are subject to FERPA and/or HIPAA (collectively, the "Confidential Records"). Awarded Bidder represents, warrants, and agrees that it shall: (1) hold the Confidential Records in strict confidence and shall not use or disclose the Confidential Records except as (a) permitted or required by this Agreement, (b) required by law, or (c) otherwise authorized by the Board in writing; (2) safeguard the Confidential Records according to commercially reasonable administrative, physical and technical standards as required by law; and (3) continually monitor its operations and take any and all action necessary to assure that the Confidential Records are safeguarded in accordance with the terms of this Agreement. At the request of the Board, Awarded Bidder agrees to provide Board with a written summary of the procedures Awarded Bidder uses to safeguard the Confidential Records. A breach of these confidentiality requirements shall constitute grounds for the Board to terminate any Agreement with Awarded Bidder.

All confidential records must remain within the continental United States.

XLII. PROPRIETARY INFORMATION

Pursuant to Chapter 119, Florida Statutes, bids received as a result of this ITB shall not become public record until thirty (30) days after the date of opening or until posting of the recommendation for award, whichever

occurs first. Thereafter, all bid documents or other materials submitted by all Bidders in response to this ITB shall be open for inspection by any person and in accordance with Chapter 119, Florida Statutes. To the extent a Bidder asserts any portion of its bid is confidential and exempt, long with specific citations of the Florida Statutes establishing the confidentiality or exemption. Failure to identify the portions of the bid claimed to be exempt or the specific statutory authority establishing the exemption shall be deemed a waiver by the Bidder that any unidentified portion of the bid is confidential or exempt from disclosure under Chapter 119, Florida Statutes.

XLIII. Clean Air Act (42 U.S.C. 7401-7671q.) and the Federal Water Pollution Control Act (33 U.S.C. 1251-1387), as amended-Contracts and subgrants of amounts in excess of \$150,000 Bidder agrees to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 U.S.C. 7401-7671q), pursuant to the Clean Water Act (33 U.S.C. 1368), Executive Order 11738, Environmental Protection Agency regulations (40 CFR part 15) and the Federal Water Pollution Control Act as amended (33 U.S.C. 1251-1387).

XLIV. For all Bids for the purchase of food for Child Nutrition the following Buy American clause is applicable:

- a) Federal regulations require that all foods purchased for Child Nutrition Program be of domestic origin to the maximum extent practicable. While rare, two (2) exceptions may exist when the product is not produced or manufactured in the US in sufficient, reasonable and available quantities of a satisfactory quality, such as bananas and pineapple or competitive proposals reveal the cost of a domestic product is significantly higher than a non-domestic product.
- b) All products that are normally purchased by Bidder as non-domestic and proposed as part of this ITB must be identified with the country of origin. Bidder shall outline their procedures to notify the School Board when products are purchased as non-domestic.
- c) Any substitution of a non-domestic product for a domestic product (which was originally a part of the bid), must be approved, in writing, by the School Board, prior to the delivery of the product.
- d) Any non-domestic product delivered to the School Board, without the prior, written approval of the School Board, will be rejected.

XLV. Debarment and Suspension (Executive Orders 12549 and 12689) – A contract award (see 2 CFR 180.220) must not be made to parties listed on the governmentwide Excluded Parties List System in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (3 CFR Part 1986 Comp., p. 189) and 12689 (3 CFR Part 1989 Comp., p. 235) "Debarment and Suspension." The Excluded Parties List System in SAM contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549.

XLVI. Byrd Anti-Lobbying Amendment (31 U.S.C. 1352) Board for an award greater than 100,000 must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. § 1352.

XLVII. LICENSES, CERTIFICATIONS AND REGISTRATIONS

Bidder must have all Licenses, Certifications and Registrations required when performing the services as described herein, in order for Bid to be considered a responsive and responsible Bid. Licenses, Certifications and Registrations required for this Bid shall be as required by Chapter 489, Florida Statutes, as currently enacted or as amended from time to time; by the State Requirements for Educational Facilities (SREF), latest version; and by Miami-Dade County, Florida. Bidder must submit a copy of all its current Licenses, Certifications and Registrations required as described herein, either with its Bid or within five working days of

notification.

An Awarded Bidder who has any License, Certification or Registration either suspended, revoked or expired after the date of the Bid Opening, shall provide notice to the Chief Procurement Officer of Procurement Management Services within five working days of such suspension, revocation or expiration. However, such suspension, revocation or expiration after the date of the Bid Opening shall not relieve the Awarded Bidder of its responsibilities under this ITB.

XLVIII. EXPENDITURE

No guarantee is given or implied as to any sums payable or the quantity or scope of any award under this ITB. Board is not obligated to place any order for goods/services as a result of this award. Order placement shall be based upon the needs and best interest of Board.

XLIX. POTENTIAL INTERNSHIP OPPORTUNITIES FOR M-DCPS STUDENTS WITH AWARDED VENDORS

The District has several initiatives to prepare and increase student participation in appropriate internship opportunities. The District's Office of Community Engagement facilitates the student internship program where organizations may participate as Business Mentors. For more information about how to be an internship provider, please visit <http://www.engagemiamidade.net/#/community-internships/c7pc> or email us at internships@dadeschools.net. As an awarded vendor, District staff may contact your organization regarding current and upcoming Business Mentor opportunities for M-DCPS students and seek your organization's participation, if eligible.

L. COMPLIANCE WITH SCHOOL BOARD POLICIES

Bidder agrees to comply with the following School Board Policies: 6465 Commercial Anti-Discrimination, Diversity, and Inclusion; 6460 Business Code of Ethics; 6325 Code of Silence; 6320 Purchasing; 6320.01 Outside Vendors Selling; 620.02 Minority/Women Business Enterprise Certification Procedures, and agree to comply with all applicable School Board contracting and procurement policies and procedures.

LI. INDEMNIFICATION

To the fullest extent permitted by law, the Awarded Bidder shall indemnify and hold harmless the Board, and its employees ("Indemnitees") from and against all claims, liabilities, damages, losses, and costs including, but not limited to, reasonable costs and attorneys' fees at the pre-trial, trial and appellate levels, arising out of, resulting from or incidental to the Awarded Bidder's performance under this Agreement or to the extent caused by negligence, recklessness, or intentional wrongful conduct of the Awarded Bidder or other persons employed or utilized by the Awarded Bidder in the performance of this Agreement. The remedy provided to the Indemnitees by this indemnification shall be in addition to and not in lieu of any other remedy available under this Agreement or otherwise. This indemnification obligation shall not be diminished or limited in any way to any insurance maintained pursuant to this Agreement otherwise available to the Awarded Bidder. The provisions of this Section are intended to require the Awarded Bidder to furnish the greatest amount of indemnification allowed under Florida law. To the extent any indemnification requirement contained in this Agreement is deemed to be in violation of any law, that provision shall be deemed modified so that the Awarded Bidder shall be required to furnish the greatest level of indemnification to the Indemnitees as was intended by the parties hereto.

DUTY TO DEFEND: The Awarded Bidder agrees, at its own expense, and upon written request by the Board, to defend any suit, action or demand brought against the Board on any claim or demand arising out of, resulting from or incidental to the Awarded Bidder's performance under this Agreement.

LII. ADA COMPLIANCE

Awarded Bidder agrees and warrants that its services and/or products comply with the Americans with Disabilities Act of 1990 and Section 504 of the Rehabilitation Act of 1973, along with the its implementing

regulations, to ensure that individuals with disabilities have an equal opportunity to participate in the School Board's programs and activities. Awarded Bidder agrees to promptly respond and resolve any complaints regarding the accessibility of its services and/or products. Awarded Bidder further agrees to defend, hold harmless and indemnify the School Board, including reasonable attorneys' fees, for any claims or actions arising out of the Awarded Bidder's failure to comply with this requirement.

SECTION 5 - SPECIAL CONDITIONS

5.1 GENERAL INFORMATION

The purpose of this Invitation to Bid (ITB) is to establish a contract, at firm unit prices, for the purchase of telephone equipment, materials, installation, and service at Miami-Dade County Public Schools.

The term of the resulting agreement shall be for a period of three (3) years with two (2) successive options to renew of one-year each, all at the discretion of the District. Options to renew will be evidenced in writing as a contract amendment to the resulting agreement, negotiated, executed and signed by the District prior to the expiration date of the resulting agreement or any valid extension thereof.

5.2 METHOD OF AWARD

The Procurement staff assigned to this ITB will evaluate all responsive and responsible bids. The contract may be awarded to a Primary Vendor, based on lowest cost, submission of all required documentation, and compliance with the conditions stated herein. Additionally, a second bidder may be recommended as an Alternate Vendor. In the event of a Default or significant delivery delays by the Primary Vendor, the entire Contract may be assigned or transferred to the Alternate Vendor, all at the discretion of the District.

The recommendation for award, for a Primary and Alternate vendor, will be submitted through Procurement staff to the School Board. The award decision will be made by the School Board, whose decision shall be final.

The agreement between the successful proposer(s) and the Board will be non-exclusive. Procurement staff may apply scoring incentives for registered SBE/MBE/VBE bidders, at the recommendation of the Goal Setting Committee, and/or vendors claiming local preference, in accordance with School Board Policy 6320.05. The Goal Setting Committee has assigned a SBE/MBE preference of 3% for this ITB.

5.3 BID SUBMISSION

The entire bid packet must be submitted either: (1) electronically via the e-bidding platforms Periscope S2G (previously known as BidSync) or DemandStar, or (2) an unbound original bid in a main sealed envelope or container (box), **along with an electronic submittal via Periscope S2G or DemandStar**. All bids must be submitted on 8 1/2" X 11" paper, neatly typed, with normal margins and spacing.

Bids must be received by the deadline for receipt of proposals specified in this ITB Timetable (Section 3).

For more information on how to submit an electronic bid via Periscope S2G or DemandStar, please refer to the instructions set forth in **Attachment 17**.

If submitting an unbound original bid, bids must be submitted in the following format:

- **One (1) unbound original proposal with all attachments and original signatures.**
- **One (1) electronic version via the e-bidding platforms Periscope S2G or DemandStar.**

The unbound original bid must be submitted in a sealed envelope or container clearly labeled on the outside with the Bidder's name, address, telephone number, the bid number, bid title, and bid Due Date to:

Miami-Dade County Public Schools
School Board Administration Building
Procurement Management Services
Attn: Delvin Padilla

1450 NE 2nd Ave
Miami, FL 33132

Hand-carried bids may be delivered to the above address ONLY between the hours of 8:00 a.m. and 1:00 p.m., Mondays through Fridays. However, please note that bids are due on the date and at the time indicated in Section 3. Additionally, M-DCPS is closed on holidays observed by the District. Bids are responsible for informing any commercial delivery service, if used, of all delivery requirements and for ensuring that the required address information appears on the outer wrapper or envelope used by such service. Bid response submission to the Procurement Management Services on or before the stated time and date will be solely and strictly the Bidder's responsibility. M-DCPS will not in any way be responsible for delays caused by the United States mail delivery system or by any other occurrence.

Bids must be signed by an authorized officer of the Proposer who is legally authorized to enter into a contractual relationship in the name of the Proposer. The submittal of a bid by a Bidder will be considered by the District as constituting an offer by the Bidder to perform the required services at the stated prices.

5.4 INSURANCE REQUIREMENTS

Bidders shall be required to provide, at the time of submittal of their bid, evidence of insurance coverages and limits meeting, at a minimum, the following requirements:

A. Workers' Compensation/Employer's Liability Insurance

Such insurance shall be no more restrictive than that provided by the Standard Workers' Compensation Policy, as filed for use in Florida by the National Board on Compensation Insurance, without restrictive endorsements. The minimum amount of coverage (inclusive of any amount provided by an umbrella or excess policy) shall be:

Part One: "Statutory"

Part Two: \$100,000 Each Accident
 \$500,000 Disease - Policy Limit
 \$100,000 Disease - Each Employee

B. General Liability Insurance

Such insurance shall be no more restrictive than that provided by the most recent version of standard Commercial General Liability Form (ISO Form CG 00 01) without any restrictive endorsements.

The minimum limits (inclusive of amounts provided by an umbrella or excess policy) shall be:

\$ 1,000,000 General Aggregate
\$ 1,000,000 Products/Completed Operations Aggregate
\$ 1,000,000 Personal and Advertising Injury
\$ 1,000,000 Each Occurrence

C. Automobile Liability Insurance

Such insurance shall be no more restrictive than that provided by Section II (Liability Coverage) of the most recent version of standard Business Auto Policy (ISO Form CA 00 01) without any restrictive endorsements, including coverage for liability contractually assumed, and shall cover all owned, non-owned, and hired autos used in connection with the performance of the Contract. The minimum limits (inclusive of any amounts provided by an umbrella or excess policy) shall be \$ 1,000,000

Each Occurrence - Bodily Injury and Property Damage Combined

In addition, upon award, the successful bidder shall provide a fully completed certificate of insurance signed by an authorized representative of the insurer providing the insurance coverages set forth hereinabove, and naming "The School Board of Miami-Dade County, Florida and its members, officers and employees" as an additional insured and certificate holder. Failure by the successful bidder to provide a fully completed certificate of insurance providing the insurance coverages outlined above, or to maintain such insurance coverages throughout the contractual period, including any extension periods, may cause the bidder to be in default, which may result in the termination of the award.

Neither approval nor failure to approve the insurance furnished by the bidder shall relieve the bidder of the bidder's full responsibility to provide insurance as required herein.

The insurance provided by the bidder shall apply on a primary basis. Any insurance, or self- insurance, maintained by the Board shall be in excess of, and shall not contribute with, the insurance provided by the bidder.

Compliance with these insurance requirements shall not limit the liability of the bidder. Any remedy provided to the Board by the insurance provided by the Board shall be in addition to and not in lieu of any other remedy (including, but not limited to, as an indemnitee of the bidder) available to the Board under this contract or otherwise.

The bidder shall be responsible for assuring that the insurance remains in full force and effect for the duration of the contractual period, including any and all extension periods that may be granted to the bidder. The certificate of insurance shall contain the provision that the School Board be given no less than (30) days written notice of cancellation. If the insurance is scheduled to expire during the contractual period, the bidder shall be responsible for submitting new or renewed certificates of insurance to the School Board at a minimum of fifteen (15) calendar days in advance of such expiration.

Unless otherwise notified, the certificate of insurance shall be delivered to:

Miami-Dade County Public Schools
Office of Risk and Benefits Management
1501 N.E. 2nd Avenue, Suite 335
Miami, Florida 33132

The above insurance requirements may only be amended or waived via written approval of the Office of Risk and Benefits Management.

5.5 SMALL/MICRO, MINORITY/WOMEN-OWNED, AND VETERAN BUSINESS ENTERPRISE PROGRAMS

The School Board of Miami-Dade County, Florida, has a strong commitment to small/micro, minority/women and veteran participation, as part of all District contracting. The School Board has active Small/Micro, Minority/Women and Veteran Certification Programs to increase contracting opportunities for local businesses. Pursuant to School Board Policy 6320.02, the Goal Setting Committee may apply scoring incentives and/or other affirmative procurement initiatives for firms. The application may be accessed through the following link: <https://miamidadeschools.diversitycompliance.com/?TN=miamidadeschools>

All small/micro, minority/women and veteran certifications must be completed online using the following link: <http://oeo.dadeschools.net/certification.asp> Furthermore, vendors certified as a small/micro, minority/women and veteran with any entity or agency other than The School Board of Miami-Dade County, Florida, should contact the Office Of Economic Opportunity (OEO). Proposers with certifications from other entities or agencies must contact the OEO for additional information on the M-DCPS shortened interlocal certification agreement. A current list of certified small, micro, veteran and minority/women firms can be found online at: <https://miamidadeschools.diversitycompliance.com/?TN=miamidadeschools>.

All vendors must comply with Board Policy 6320.02 and the procedures described in the OEO Administrative Procedures Manual in effect at the time the vendors enter into an agreement with the Board. All vendors will be required to submit a monthly report via the Online Diversity Compliance System for compliance with Small/Micro, Minority/Women and/or Veteran subcontractors utilized and/or any affirmative procurement initiatives. All vendors will be required to submit monthly compliance reports online at: <http://miamidadeschools.diversitycompliance.com>. Please contact the Office of Economic Opportunity at 305 995-1307 or via email at OEO@dadeschools.net for additional information on getting certified as a

Small/Micro, Minority/Women and/or Veteran firm.

5.6 REQUIRED SUBCONTRACTOR INFORMATION TO BE SUBMITTED BY THE BIDDER

Please indicate, in your bid response, the proposed percentage or dollar amount of the work to be assigned to the certified subcontractor, along with the scope of work the subcontractor will provide related to this solicitation. Bidder(s) are required to provide notification of certified subcontractor substitution within five (5) business days of any change. Please note that the substitution of subcontractor must have prior approval by the Office of Economic Opportunity. All substitution requests should be submitted on the Substitution Form.

SECTION 6 – SCOPE OF WORK

6.1 SCOPE OF WORK

This bid is for on-site service for maintenance and repair, purchases and for adds, moves, and changes of various items of telephone equipment for Miami-Dade County Public Schools (M- DCPS). On-site service includes, but is not limited to, repairs, maintenance support, adds, moves, and changes of analog, hybrid, and digital telephone sets, speaker-phones, digital displays attached to sets, terminals used for system administration, headsets, public address systems and speakers attached to telephone systems, digital key systems, hybrid and digital PBX systems, voice-mail systems, DSU/CSU interface units, telephone system battery plants, battery backup systems, copper wiring and fiber optic wiring, patch panels, connectors, protectors and all ancillary equipment and/or peripherals.

This bid will establish a contract for on-site service, at firm unit prices for Time and Material costs for maintenance support, repairs, adds, moves, and changes and discount percentage off of the OEM's catalog list price. The equipment is located in approximately 450 locations in Miami- Dade County, Florida.

- A. Bidders are required to use the attached Bid Summary Spreadsheet in Section 7 when submitting their bid. **Additionally, the following must be submitted as an addendum to the Bid Summary Spreadsheet: The bidder(s) entire catalog on in an Excel format as well as any resources that may be used in the performance of this contract.** Such resources shall include a labor description, hourly labor rate, (regular time, over- time and holidays) and any offered discounts to the District.
- 1) The Service Call charge per manufacturer of equipment must include all charges necessary to restore each item to proper operation as specified by the manufacturer. Service will include system and feature programming as requested. All materials costs shall adhere to the Cost-Plus percentage identified in Table 5 of the Bid Summary Spreadsheet. Additional discounts may be offered by the bidder(s) during any RFQ process.
 - 2) The hourly labor and materials cost will be used for adds, moves, and changes and repairs and is intended to cover work from the telephone system location to and including the station jack.
 - 3) The bidder's catalog must include for each item at least these elements: a unique identification number (Manufacturer's ID number preferred), a description, the MSRP per unit and any discounts being offered by the bidder(s) to the District, and installation cost (if applicable). It is preferred that the bidder's catalog include a picture of the items. Station wiring items **must be included in the bidder's catalog. M-DCPS, at its sole discretion, will advise whether the submitted items will be acceptable.** The catalog of materials will be used for maintenance, repairs and adds, moves, and changes. The catalog must be kept current with new products, electronically, during the term of the contract and must be in conformance with the terms and conditions of this ITB for use of the catalog. Notification of deletions and/or additions to the catalog must be given thirty (30) days prior to the change and submitted to Procurement Management Services with a copy to Enterprise Service Management (ESM).
- B. M-DCPS reserves the right to make purchases from bidders providing time and materials price per Service Call. To facilitate the purchases, bidders are encouraged to include in their catalog the components, prices and discounts of all items required to assemble various types of PBX and Key-Hybrid systems and all ancillary equipment and associated peripherals.

6.2 BIDDER'S QUALIFICATIONS

- A.** Bidders must have an established business providing service to users in the contiguous United States, with a minimum total customer base of 25 telephone systems, their associated telephone sets, administration terminals and all ancillary equipment, and voice mail systems, in the contiguous United States, with verifiable direct manufacturers relationship (not through intermediaries) or be an established firm which has done business with M-DCPS for at least seven (7) years.
- B.** It is preferred that Bidders of Avaya products and services be Authorized Platinum Level partners.
- C.** Bidders must use technicians who are manufacturer certified and experienced in operation, administration, and trouble analysis of Digital and Hybrid PBX systems operating in a network connected through DS-1, SIP, Ethernet, MPLS, or other high- speed circuits provided by the local exchange carrier. The experience must include networked digital PBX systems that carry both voice and data channels. Knowledge and proficiency of the following: Nortel 11C, Call Pilot, NorStar, NAM/FLASH, Avaya IPO 500v2, Avaya CM, Avaya 88xx, 87xx, 83xx, G700 and G450. Bidders. Proof of manufacturer certification must be submitted. A certified technician must be on-site during the accomplishment of awarded work under this contract. While on School Board property, the Awarded bidder(s) is responsible for the conduct and actions of their technicians providing services to M-DCPS. M-DCPS has the right to have individuals barred from working on School Board property.
- D.** Bidders must provide proof of experience in their bid by submitting a list of three (3) of their largest customers and the quantity, approximate size (lines and trunks) and types of equipment presently being serviced for these customers. The names and telephone numbers of contact persons at each customer site must be submitted with the bid on Attachment 13 of this ITB. The document may be replicated as needed to fulfill this requirement.
- E.** Bidders must provide the following additional information in their bid:
 - A.** The number of technicians, with associated job descriptions, and other support persons on duty during the normal workweek and on weekends. Contact names and numbers for bidder, including, Sales, Project Management, Accounts Receivables and Customer Service.
 - B.** The extent of the technical training and years of experience of individual service personnel.
 - C.** The general types and quantities of spare parts available and their locations. This should include trunk and station circuit cards, ups', common control circuit cards and crash kits, including the types of telephone sets.
 - D.** Explain the availability of remote diagnostics and alarm monitoring. Indicate if a dedicated 1FB line or any other type of connection is needed to provide the remote service.
 - E.** Explain the bidder's relationship to various manufacturers, specifically the relationships, if any, to Avaya.
 - F.** The location of the bidder(s) local repair facilities.
 - G.** Bidders must indicate what percentage their local workload would increase in the event they were awarded this bid.

- H.** In order to be considered for this bid, the bidder(s) must have access to the following items from the manufacturers they are bidding, i.e.: Avaya.
- i.** Manufacturer training of service personnel.
 - ii.** Manufacturer return parts authorization.
 - iii.** Throughout the duration of this contract, the vendor shall possess, or have immediate access to all OEM registered software and be capable of providing support as required.
 - iv.** Manufacturer technical assistance services and products.
 - v.** Manufacturer products listed below:

Each participating bidder must acknowledge that as part of their bid submittal, they have access to and have included manufacturer pricing and their proposed discounts, as outlined in the Bid Summary Spreadsheet, for the following list of items (or current equivalent) that are key components for various District platforms.

Avaya IP Office
IP OFFICE/B5800 IP500 TRUNK CARD PRIMARY RATE UNIVERSAL SINGLE, Part Number 700417439
IP OFFICE 500 VERSION 2 CONTROL UNIT, Part Number 700476005
IP OFFICE/B5800 IP500 EXTENSION CARD PHONE 8, Part Number 700417231
IPO IP500 EXP MOD DGTL STA 30, Part Number 700426216
IPO IP500 EXP MOD PHONE 30, Part Number 700426224
IP OFFICE MEDIA CARD VOICE CODING MODULE 64 V2, Part Number 700504032
IP OFFICE IP500 V2 COMBO CARD ATM V2, Part Number 700504556
IP Office Unified Communications Module v2, Part Number 700507449
Avaya PBX
24 Port Analog Line Circuit Pack TN793CP RHS, Part Number: 700394729
24 Port Digital Line Circuit Pack TN2224CP RHS, Part Number: 700394646
G450 Media Gateway, Part Number: 700407802
G450 Power Supply 400W AC, Part Number: 700432529
G650 MEDIA GATEWAY RHS, Part Number: 700394950
G700 Media Gateway, Part Number: 700394984
MM710B E1/T1 Media Module, Part Number: 700439250
MM711 Analog Media Module RHS, Part Number: 700394661
MM716 Analog Media Module 24 FXS RHS, Part Number: 700394703
MM717 24 Port DCP Media Module RHS, Part Number: 700394711
S8300D Server, Part Number: 700407810
TN767E DS1 Interface/T1/ISDN PRI Interface (24 channel), Material Code: 102930
Nortel PBX System
1.5Mb DTI/PRI Card, Part Number: NTRB21AB
Adtran CSU, Part Number: 527181
Analog Line Card, Part Number: NT8D09BA
DC Power Supply, Part Number: NTDK78AA

Digital Line Card, Part Number: NT8D02GA
Fiber Receiver Card, Part Number: NTDK23BA
Fiber Remote Cable / 30 ft, Part Number: A0634496
Option 11C Direct Digital Interface (T1) CSU, Part Number: NT AS1074
Small System Controller Card With Fiber Expansion Daughter Board, Part Number: NTDK20EA
M2250 Attendant Console, Part Number: NNTM60A808C6
Nortel Key System
1A2 Trunk Cartridge (Modular and Integrated Communication System (ICS), Part Number: A0365297
6-Port Combo, Part Number: NTBB25GA93
Analog Station Module With Message Waiting, Part Number: A0651835
Battery Backup / Compact Integrated Communication System (ICS), Part Number: 984903
FastRAD - Remote Access Device, Part Number: NT8B80AAB
Fiber 2 Port Expansion, Part Number: A0404244
Fiber 6 Port Expansion, Part Number: A0404245
Modular Integrated Communication System (ICS), Part Number: NT7B53FA93
Startalk Flash Model 4 With Feature Cartridge (48 M'Box), Part Number: A0759274
T1 Card, Part Number: NT7B74GA93
UPS
1500VA/900W 120V tower UPS, Model S70-1500
1500VA/1350W 120V UPS with 1A charger 2U, Model P90-1500
2000VA/1800W 120V UPS with 1A charger 2U, Model P90-2000
3000VA/2700W 120V UPS with 1A charger 2U, Model P90-3000
1250VA/1125W 120V UPS module with 246W 36V nominal charger 2U, Model P90L-1500
1700VA/1530W 120V UPS module with 328W 48V nominal charger 2U, Model P90L-2000
2500VA/2250W 120V UPS module with 493W 72V nominal charger 2U, Model P90L-3000
3000VA/2400W 208/230V UPS module with 6A charger 2U, Model P90Lg-3000
36V battery pack for P90L-1500 2U, Model P90-BP36
48V battery pack for P90L-2000 2U, Model P90-BP48
72V battery pack for P90L-3000 and P90Lg-3000 2U, Model P90-BP72
Avaya Cloud Office
Maintenance
995/Lindsey Hopkins Maintenance Permissions & 8-5 M-F Tech support
CM5 MSP

I. Bidders shall submit pricing for all categories on Table 4 - Discount Off MSRP.

6.3 AWARDED BIDDER(S) RESPONSIBILITIES

- A. It is understood and agreed that the Awarded bidder(s) is solely responsible for all parts and labor provided by this contract. For any items purchased under this contract, while during the warranty period, all software and firmware enhancements; major and minor software, dot releases, patches and fixes, etc. exclusive of installation fees, shall be provided to the District at

no additional cost. For items seven (7) years old or less, purchased prior to this contract or out of warranty on the new contract, all software and firmware enhancements; major and minor software, dot releases, patches and fixes, etc. exclusive of installation fees, shall be provided to the District at no charge. All software and firmware enhancements; major and minor software, dot releases, patches and fixes, etc. must be tested and approved by M- DCPS, ITS staff, prior to installation on M-DCPS equipment / systems and will be scheduled in coordination with ITS staff. Priorities will be given to updates critical to system functionality. Awarded bidder(s) must maintain support on all software, patches, fixes and dot releases for 5 years from the purchase date.

- B.** Awarded bidder(s) must maintain an inventory of spare parts for all equipment- covered under this contract and for its duration and applicable warranty period for items obtained throughout this contract.
- C.** Employees of the Awarded bidder(s) must be technically competent, appropriately manufacturer's certified and trained, and physically able to perform the work.

The vendor is required, and shall have the capability, to simultaneously perform all work described herein at multiple locations throughout Miami-Dade County on a timely basis.

Per the District's current policy, all personnel employed by the vendor, including any subcontracted bidder(s) and subcontracted bidder(s)'s employees when applicable, shall display at all times a District approved identification badge. <http://hb1877.dadeschools.net/>

- D.** Employees without proper identification shall not be permitted to work on M-DCPS property.
- E.** The vendor's employees, subcontractor(s) and its employees, and any other personnel, including material suppliers-engaged in any activities encompassed by this term bid are strictly forbidden from participating in any manner and form of interaction with students of Miami-Dade County Public Schools. Violation of this provision may result in removal of the individual(s) involved from the school site, the project, and further, the vendor may be prohibited from employing the individual in any future work with M- DCPS performed under this term bid.
- F.** Employees of the awarded bidder(s) must cooperate with M-DCPS site personnel to minimize disruption to the school or site operations.

It is agreed and understood that the installation work may require mechanical work such as removal of ceiling tiles, drilling holes in walls and floors and similar changes to an existing building. Contractors shall restore such disturbed areas to original condition. Note that some buildings may have interlocking tile ceilings as well as drop-in type ceiling tiles. Tiles damaged by the contractor shall be replaced by the contractor at no cost to M-DCPS.

All wiring and terminations shall be installed according to the best industry practices and manufacturer's specifications. Cable not in conduit shall meet fire codes and all cable shall be neatly run and have proper mechanical protection. Cables shall be supported by bridle rings and ties to permanent supports. In any new installations fiber optic cable shall be continuous, without splices. All horizontal cable and fiber shall be plenum rated. All cable in raceway concealed in concrete slab on grade or buried below shall be deemed wet and outdoor water-resistant cable & is required. All fiber shall be Indoor/Outdoor Plenumrated.

Prior to performing any work the contractor and M-DCPS's representative shall determine if a hazard exists. If, during the work, asbestos is suspected or discovered the contractor shall immediately notify the ISS Project Manager who will contact M-DCPS's safety office and designated M-DCPS personnel. The Asbestos Abatement office will determine if a hazard exists. If there is a hazard all work will stop at that location until the hazard is abated by M-DCPS.

- G.** Awarded bidder(s) must maintain or have immediate access to a state-of-the-art service shop with modern, high quality test equipment. Field technicians must be equipped with adequate tools and test equipment to perform on-site diagnostics and replacement of failed subassemblies such as circuit cards, power supplies, disk drives, telephone sets of various types, handsets and mounting cords, consoles, keyboards and various types of displays, all ancillary equipment and peripherals.
- H.** Awarded bidder(s) must provide, at the monthly service meeting held at ITS, with Enterprise Service Management (ESM) and Infrastructure and Systems Support (ISS) staff, an updated list of their escalating chain of command with their associated telephone numbers. Awarded bidder(s) must provide emergency contacts and have a trained technician available twenty-four (24) hours per day, every day of the year.
- I.** Awarded bidder(s) will be responsible for the recording and distribution of the monthly service meeting minutes. The minutes must be in a Microsoft WORD format and emailed to a designee of M-DCPS within 10 working days of the meeting. Awarded bidder(s) must agree to meet, on a monthly basis and provide an electronic report in Microsoft Excel spreadsheets, the format will be determined by M-DCPS-Enterprise Service Management, and contains as a minimum, but is not limited to the following information:
- 1)** Number of major, minor and routine service calls per location per model and serial number of equipment.
 - 2)** Number of service calls per equipment serial number
 - 3)** Number of failures by generic type such as power supplies, hard disks, video cards, motherboards, etc.
 - 4)** Number of loaner equipment by location, model, PC numbers if applicable and serial number replaced.
 - 5)** Status and estimated completion date of removed equipment.
 - 6)** Average repair response time by priority.
 - 7)** Average repair resolution time by priority.
 - 8)** Number of repeat visits.
- J.** Awarded bidder(s) agrees to meet on site, at no cost to M-DCPS, with local exchange carrier and/or ISS staff to accomplish resolution of unresolved trouble calls at times and dates arranged by M-DCPS personnel.
- K.** Awarded bidder(s) must cooperate with M-DCPS personnel to record and manage the inventory of telephone instruments and switching equipment circuit packs. Items that are removed due to failure and replaced by like items must be recorded by its M-DCPS Property Control Number (PCN), manufacturer, item description, model number and serial number, if available. Any telephone equipment that is replaced, including telephone sets, must be reported to the ISS for inventory control. If there is no PCN, then model type and Serial Numbers (SN) should be used. If there is no SN, then manufacturer and model type should be used. If an on-site M-DCPS-owned part is used, to replace a failed part, the Awarded bidder(s) must provide a written report and a replacement part to M-DCPS as soon as possible not to exceed thirty (30) days. A copy of this report must be provided to ITS Network Support Help Desk. Inventory control must be a major factor in managing this contract. Identification of M-DCPS-owned and Awarded bidder(s)-owned parts will be a continuing process to prevent loss to either party.
- L.** The Awarded bidder(s) must backup the existing operating system, applications and customer data software files prior to and upon successful performance of an add, move, change, repair or replacement of a failed system (i.e., PBX, Key system, voicemail, etc.). The backup must be stored at the Awarded bidder(s)'s place of business and must be provided electronically via e-mail or delivered on CD-ROM or Jump Drive to ISS within 24 business hours of the creation of

the backup. Failure to conduct back-ups will result in the bidder having to restore the system at no cost to M-DCPS.

- M.** Any cost incurred by M-DCPS from the Awarded bidder(s) requiring assistance from an outside contractor (e.g., OEM) will be reimbursed to M-DCPS through procedures established by M-DCPS Enterprise Service Management.
- N.** A minimum 90-day warranty on parts and labor is required on all service work. In the event the manufacturer of the parts offers a longer warranty period, M-DCPS must receive the longer-term warranty. Refurbished parts may only be used when no new parts are available for the system. Documentation to this affect must be submitted to M-DCPS staff prior to their use for approval. Refurbished parts must have the same warranty as new parts.
- O.** Invoices must be summarized for Service Calls submitted for that period and contain, in addition to the standard Awarded bidder(s) invoicing information, the following information for each service call:
 - 1) Awarded bidder(s)'s reference number
 - 2) Service Call number
 - 3) M-DCPS site location name and number where service was performed.
 - 4) Completion date
 - 5) Service Call cost

Attached to the invoice must be the original or a copy of the worksheet for each service call, containing the following information:

- 1) Awarded bidder(s)'s reference number.
- 2) ITS Service Call number
- 3) M-DCPS site location name and number where service was performed
- 4) Site address where service was performed
- 5) Contact at site
- 6) Contact phone number
- 7) Date/time call was placed
- 8) Technician's name
- 9) Date/time of visit (if applicable)
- 10) Completion date
- 11) Problem reported
- 12) Cause of problem
- 13) Problem resolution
- 14) Extension Numbers (if applicable)
- 15) List of parts used
- 16) Service Call cost
- 17) Legible signature and printed name of the person for whom the work was successfully completed. (NOT required for Remote Resolutions)
- 18) For Remotely Fixed service calls, the worksheets must state that the service call was accomplished REMOTELY

Any information missing from the worksheet or invoice is cause for return of the invoice and worksheet to the Awarded bidder(s) and may result in delay of payment.

- P.** In addition to the Awarded bidder(s)'s standard information, invoices for adds, moves, and changes work must contain the following information.
 - 1) Awarded bidder(s)'s reference number
 - 2) M-DCPS site location name and number where service was performed.

- 3) Completion
- 4) M-DCPS Authorization Number
- 5) Invoice amount

Attached to the invoice must be the original or a copy of the worksheet containing the following information:

- 1) Awarded bidder(s)'s reference number
- 2) M-DCPS site location name and number where service was performed
- 3) Site address where service was performed
- 4) Contact at site e. Contact phone number
- 5) Technician's name
- 6) Date/time of visit (if applicable)
- 7) Completion date
- 8) Travel time (for informational purposes only)
- 9) Time on site
- 10) Parts and materials used as listed in Awarded bidder(s)'s catalogs
- 11) M-DCPS Authorization Number
- 12) Invoice amount
- 13) **Legible signature and printed name of the person** for whom the work was successfully completed

Any information missing from the worksheet or invoice is cause for return of the invoice and worksheet to the Awarded bidder(s).

- Q. Concurrent with the Awarded bidder(s)'s normal billing cycle, the Awarded bidder(s) will submit separately, the data contained in Sections 6.3(O) and 6.3(P), electronically in a spreadsheet format, compatible with Microsoft Excel for Windows. The format will be determined by M-DCPS Enterprise Service Management (ESM).
- R. ITS considers that the use of remote diagnostics and remote alarm reporting will be included in the price per Service Call charge. No payment will be made for these functions without a prior authorization number from ITS.
- S. Awarded bidder(s) must adhere to manufacturer's and M-DCPS telephone software and hardware standards when replacing software/hardware. All replacements will be with manufacturer specific like items, which are equal or better in performance and capabilities and a vintage not older than that being replaced.
- T. Awarded bidder(s) are fully responsible for replacement of all M-DCPS items used in performing service or which are removed from M-DCPS premises.
- U. Awarded bidder(s) needs to provide a detailed plan for rapid replacement of systems that must be replaced due to a disaster. Bidders are requested to submit written documentation that details disaster recovery plans for this contract in their bid response. The plan is to account for immediate short-term temporary and permanent long-term service restoration measures that identify respective services capability and timelines for catastrophic failures at 25 locations. Also, the plan is to identify what percentage of the resources allocated to the disaster recovery plan is dependent on outsourcing.
- V. Awarded bidder(s) will maintain the confidentiality of passwords and security codes (i.e., administrative logins, TTI) at all times. ITS will maintain and distribute passwords and security codes in accordance with district standards and will provide passwords and security codes to Awarded bidder(s) on a need-to-know basis. ITS, may at its discretion, assign password and security codes maintenance responsibilities to Awarded bidder (s) at the Time and Material rate.

Awarded bidder(s) must provide written notification to the ISS upon termination, resignation or employment separation of Awarded bidder(s) personnel who possesses knowledge of M-DCPS passwords and security codes. The written notification must occur within 8 hours and must identify which passwords and security codes are involved. The Awarded bidder(s) will identify two (2) employees designated as point of contact for the distribution of passwords and security codes to additional Awarded bidder(s) employees.

6.4 STUDENT DATA PRIVACY

Awardees understand and agree that it is subject to all School Board rules, state, and federal laws relating to the confidentiality of student information. Awardees further agree to comply with the Family Educational Rights and Privacy Act ("FERPA"). Awardees shall treat all student information as confidential and shall not disclose this student information to any third party.

6.5 EMPLOYEE DATA PRIVACY

Awardees agree that should it come into possession of the Social Security Number, Address and/or current personnel evaluation regarding any employee of the Miami-Dade County Public Schools, it will not release such information to any third party without first giving written notice of such intended action to the School District.

Awarded bidder(s) will maintain and provide to M-DCPS a current list of employees authorized to provide service under this contract. The Awarded bidder(s) must provide a list of current employees to ITS at the monthly service meetings and whenever there is a change in staff that performs under this contract. The list must provide information as to the individuals' duties, responsibilities and knowledge of M-DCPS passwords.

6.7 CODES AND PERMITS

All work performed and materials used shall comply with all applicable federal, state and local codes, laws, ordinances and regulations. The successful vendor(s) shall be responsible for all necessary licenses and permits, as may be required.

6.8 MANUFACTURER'S CERTIFICATION

In the event a bid is submitted by a bidder other than the equipment manufacturer, a written certification executed by the manufacturer **shall be required, stating the bidder is an authorized representative** of the manufacturer.

6.9 E-RATE PROGRAM PARTICIPATION AND INVOICING PROCEDURES

- A. Where M-DCPS purchases are made using available E-Rate funding, the selected Vendor/Awarded bidder(s) (known as the "Service Provider" throughout E-Rate program documents) would have initially been expected to:
 - 1) Follow all vendor requirements, and be familiar with the E- Rate funding process, as outlined in the SLD (Schools & Libraries Division) / USAC (Universal Service Administrative Corp) practices outlined under the "Service Provider" section of their website at: <http://www.universalservice.org/sl>
 - 2) Carefully scrutinize all line-item components on the original quotes provided and determine any non-eligible components within the proposal. These must be highlighted and identified so M-DCPS is cognizant of any line item to be paid at 100% of the cost, before sending the quote for analysis and subsequent funding by the SLD.
 - 3) Assume financial responsibility, at time of final invoicing and payment by the SLD, for any

and all ineligible line items not originally identified by the Vendor/Awarded bidder(s). This will be based on the SLD's latest publication of their Eligible Services List guidelines at time of quoting and available through the SLD's website at: <http://www.usac.org/sl/applicants/beforeyoubegin/eligible-services-list.aspx>

- 4) Receive from M-DCPS a Purchase Order identifying the line items listed in the quote and prices established. This PO will be reflecting the percentage of the cost associated with M-DCPS portion of the total cost, according to E-Rate Program rules.
 - 5) Understand that, the Purchase Order will be the only acceptable document the vendor will receive from M-DCPS acknowledging contractual responsibility for the delivery of the listed products/services.
 - 6) Receive reasonable M-DCPS support on all vendor attempts to retrieve proper funding for equipment/services rendered through the E-Rate program.
 - 7) Expect that M-DCPS would have timely posted all required FCC E-Rate program forms and documents, according to the instructions provided by the E-Rate program under the "Applicant" section of the USAC/SLD website at: <http://www.universalservice.org/sl>.
 - 8) Recognize that M-DCPS will NOT be liable for any unpaid funding from the SLD to the Vendor.
- B.** The Vendor/Awarded bidder(s) must follow the following steps for invoicing, both for the recovery of the SLD/USAC funding percentage, and the portion the Applicant (M-DCPS) is expected to pay under E-Rate program rules:
- 1) Submit the Service Provider Invoice (SPI) to M-DCPS only AFTER services and/or equipment have been delivered, installed, and are operational – as duly noted and recorded by M-DCPS Infrastructure Systems Support personnel – BUT BEFORE any invoicing is submitted to the SLD / USAC for reimbursement.
 - 2) The SPI will be a complete invoice of ALL services and/or equipment, reflecting all charges to M-DCPS (itemizing both eligible and ineligible components) and to USAC. This single and consolidated invoice will contain a comprehensive itemized breakdown of all charges and clearly set forth the appropriate percentage of payments due from USAC and M-DCPS respectively – and should total the agreed-upon amount for 100% payment.
 - 3) The Vendor/Awarded bidder(s) will only be permitted to submit an SPI for reimbursement to USAC once M-DCPS has reviewed and has returned a signed approval of said SPI to Vendor/Awarded bidder(s). All SPIs will be reviewed within 14 calendar days of receipt by the M-DCPS Director of the E-Rate Program.
 - 4) If, in the course of M-DCPS' review of any SPI, M-DCPS finds any variances between those items delivered and those for which a bill is being submitted, the M-DCPS E-Rate staff will notify the Vendor/Awarded bidder(s) through the Enterprise Service Management (ESM) office that they have not approved the SPI and will indicate which items need to be modified. Once any variances are corrected, the Vendor/Awarded bidder(s) must resubmit the SPI to the M-DCPS Director of the E-Rate Program, through the Enterprise Service Management (ESM) for his/her approval. M-DCPS will again have 14 calendar days to review the re-submitted SPI.
 - 5) Vendor/Awarded bidder(s) agrees that, at any time, M-DCPS is free to verify with the SLD/USAC that only those M-DCPS approved SPIs have been submitted to the E-Rate Program for reimbursement. Any indication that non-approved SPIs have been submitted to

SLD/USAC will be considered a material breach of the terms of the contract. Additionally, M- DCPS will, upon becoming aware of any non- approved SPI submissions, notify USAC so that they may take any additional steps available to them to prevent Waste, Fraud, and Abuse of Program funds.

- 6) Damages assessed to the Vendor/Awarded bidder(s) for submission of a non-approved SPI may include and are not limited to suspension of the Contract, termination of the Contract, damages in the amount of the overpayments made to the Vendor/Awarded bidder(s) by M- DCPS or USAC, payment of related funding COMAD (Commitment Adjustments) forced upon M-DCPS by the SLD/USAC, or suspension or disbarment from participation on the E-Rate program. In no way shall this contract modify or limit the rights of SLD/USAC against the Vendor/Contractor, also known to them as the Service Provider.

6.10 PROCEDURE FOR SERVICE CALLS

The following procedures must be followed in handling Service Calls from ITS:

- A. The Awarded bidder(s) must accept calls, emails or other electronic means of notification as defined by M-DCPS ITS Network Support HelpDesk.
- B. Awarded bidder(s) receiving calls, emails or other electronic means of notification from an entity other than the M-DCPS ITS Network Support Help Desk must refer the caller to the MDCPS ITS Network Support Help Desk.
- C. The M-DCPS ITS Network Support Help Desk will assign each call a Service Call number.
- D. The M-DCPS ITS Network Support Help Desk will give the Awarded bidder(s) the following information:
 - 1) Short description of the trouble
 - 2) Contact person's name, the location name, number, address, and equipment needing service as confirmed by ISS staff
 - 3) Phone number for the location and contact
 - 4) The access hours at the location
 - 5) Priority code for the service
 - 6) M-DCPS Service Call number with priority codes are defined in Section 6.14
 - 7) Manufacturer, model number and/or serial number provided by site contact
 - 8) M-DCPS Network Support Help Desk callback phone number
- E. When issuing a Service Call, the Awarded bidder(s) must provide a reference number. The time for determining compliance with response time requirements of the bid will begin when the Service Call is issued to the Awarded bidder(s).

If the problem is not related to the equipment, the technician must call the M- DCPS ITS Network Support Help Desk prior to performing any work that may result in additional charges. An authorization number from the M-DCPS Network Support Help Desk must be obtained before proceeding.

- F. When the problem is resolved and/or prior to leaving the site, the technician must call, email or by other electronic means, notify the M-DCPS ITS Network Support Help Desk and report the status of the problem and the method of problem resolution.
- G. When problem is resolved "Remotely", the person performing said repair must call, email or by other electronic means, notify the M-DCPS ITS Network Support Help Desk informing them that the call is being worked remotely and report the status of the problem and the method of problem resolution.

- H. When a problem cannot be resolved in the time specified in the bid, the Awarded bidder(s) must call, email or notify by other electronic means, the M- DCPS ITS Network Support Help Desk and provide a problem update and an estimated time of completion.
- I. When the M-DCPS ITS Network Support Help Desk receives the call, email or other electronic communication, from the Awarded bidder(s) that a Service Call has been completed, this will be the time used for determining compliance with the bid for problem resolution time.
- J. Any time services are provided the vendor shall ensure that the systems are left in an operable condition. The vendor shall document all performed services.

Stoppage of work:

M-DCPS reserves the right to stop work on any project if, in the opinion of the M- DCPS authorized representative or the Inspector.

- 1) Materials or work are not in conformance with the specifications, applicable codes, standards, specifications and/or accepted practices
- 2) The vendor's activities result in damage to District Property
- 3) The vendor's activities interfere with the normal operation of the facility or its program
- 4) Vendor's personnel are not properly certified
- 5) Any other condition, situation, or circumstance which, in the opinion of the M- DCPS authorized representative or Inspector, would be a detriment to the best interests of the District if allowed to persist.

6.11 INSPECTION OF WORK

M-DCPS reserves the right to inspect the vendor's work at any time to assure compliance with all terms and conditions of the contract. All work will be inspected pursuant to applicable codes as referenced within this document. Vendor will have personnel present during the scheduled inspections.

6.12 PROCEDURES FOR TIME AND MATERIAL

- A. The Awarded bidder(s) will be provided with the following:
 - 1) Work Order detailing work being requested and include:
 - i. M-DCPS authorization number.
 - ii. Short description of required task.
 - iii. Location name, address and M-DCPS site number.
 - iv. Contact person's name on site and at ITS.
 - v. Access hours to the work site.
 - 2) Signed copy of Purchase Order if applicable (when equipment is being purchased).
- B. If the Time and Material is for a repair call, procedures will be the same as for a Service call. If the Time and Material is for an add, move or change request the Awarded bidder(s) must provide:
 - 1) Electronic acknowledgement of receipt of M-DCPS request within 4 hours.
 - 2) Assign due date within 24 hours. In the event the work requires deviation from the original request, the Awarded bidder(s)'s representative must secure written authorization to proceed with the modifications from the AMC department. In the event the request requires an estimate, the Awarded bidder(s) will notify the AMC department in writing, and is required to provide the written estimate documentation within 48-hours.

- 3) Acknowledgement must include Awarded bidder(s)'s assigned reference number and due date.
- 4) Vendor is to provide a weekly electronic Microsoft Excel document that provides detailed information (i.e., M-DCPS and Awarded bidder(s) reference numbers, due date, status, etc.) on all requests that are presently acknowledged by the Awarded bidder(s).

C. When complete/AMC, the Awarded bidder(s) will:

- 1) Notify ITS of successful completion and customer satisfaction notice.
- 2) All work must be completed as specified in the contract.

6.13 HOURS OF ON-SITE MAINTENANCE AVAILABILITY

Site availability varies by location and may include operation between 4:00 a.m. through 11:00 p.m., Monday through Friday, or as agreed to. The District's 995 network operates on a 24/7 basis and bidders may be required to provide support. Vendor shall not impede nor interfere with the normal function of the facility, its occupants or its programs.

6.14 PRIORITIES FOR SERVICE

- A. The Awarded bidder(s) must provide a single point of contact **and a local or toll-free line** to that contact and a backup for Emergency Service Calls (P1) to be placed. Emergency Service Calls must be given immediate attention and the service must occur before any other Service Calls not already in progress. The M-DCPS ITS Network Support Help Desk must be given a status update and a technician must respond and if necessary, have remote access or, be on site within two (2) hours of the initial Emergency Service Call. Service must be restored within six (6) normal operating hours of impacted site. The following situations shall be considered Emergencies:
 - a. System cannot make outgoing calls
 - b. System cannot receive incoming calls
 - c. System operating in power failure mode
 - d. Failure of PBX console
 - e. Failure of a telephone set used as a console
 - f. Failure of school principal or site manager phone
 - g. Failure of 20% or more of trunk circuits
 - h. Failure of 20% or more of stations/extensions
 - i. Failure of the networking function of the 995 network
 - j. Emergency failure of a voice-mail system as determined by M-DCPS at the time of service call
 - k. Other failures as determined by M-DCPS (e.g. Loss of line in School Security Office)
- B. Service Calls that are not an emergency will be considered routine. Routine Service Calls (P2) must be serviced after the Emergency Service Calls. A technician must respond by remote access or on-site within eight (8) work hours. Service must be restored within sixteen (16) work hours.

6.15 EQUIPMENT

This bid shall be for new equipment. Newly manufactured containing used or rebuilt parts, remanufactured, rebuilt, reconditioned, newly re-manufactured, demonstrator or prototype equipment will only be acceptable at the discretion of M-DCPS.

6.16 UL/CSA/ETL APPROVAL

All electrical equipment shall bear the approval symbol or name of Underwriters' Laboratories, Inc., The

6.17 EQUIPMENT REPLACEMENT

- A.** It is intended that failed single-line telephone sets (type 500/2500); handsets and mounting cords will be replaced by ITS resources and will not result in any Service Calls to the Awarded bidder(s).
- B.** For equipment, the Awarded bidder(s) are required to be an authorized distributor of the manufacturer's systems and associated components of the systems. This includes all replaceable subassemblies such as circuit cards, power supplies, disk drives, UPS systems, and all parts necessary for the normal functioning of the systems. The Awarded bidder(s) must also present a letter from manufacturer stating they are in good standing and what products they are authorized to support.

6.18 TRAINING

- A.** Training classes covering system user operation shall be conducted by the vendor if requested by the M-DCPS authorized representative. Attendees shall be determined by individual site administrators.
- B.** Training classes covering system maintenance and administration shall be conducted by the vendor if requested by the M-DCPS authorized representative. Attendees shall be determined by M-DCPS authorized representative.
- C.** If such training is conducted, documentation of the training shall be provided by the vendor indicating the name of the trainer and the trainer's qualifications, the date of the training and a list of attendees. This documentation shall be placed in the system record logbook and a copy forwarded to the M-DCPS authorized representative.

6.19 FACILITY USE, CLEAN UP AND PROTECTION

- A.** The vendor shall conform to all applicable OSHA, state and local regulations while performing work under this contract, and shall take all necessary, ordinary and extraordinary precautions to provide a safe work environment at all times for the occupants of the school and the general public in and around the work area. The vendor shall also ensure that M-DCPS property is protected from damage and defacement resulting from the vendor's activities. Any such damage shall be corrected by the vendor at the vendor's sole expense. Prior to payment of the final invoice, all corrections shall be inspected and accepted by the M-DCPS authorized representative.
- B.** It is the responsibility of the vendor to keep the site free from trash, debris, excess materials, tools and hazardous conditions at all times. The vendor shall be responsible for disposal of all waste material and shall do so in conformance with applicable laws codes and ordinances.
- C.** Vendor, its employees and /or assigns shall not use M-DCPS restrooms, cafeteria, lounge, dumpsters, equipment, etc. without permission from the M-DCPS authorized representative. Under no circumstance can vendor, its employees and /or assigns use a student restroom.
- D.** Vendor's materials, equipment and tools that are not in use shall be stored in a secured location supplied by the vendor and approved by M-DCPS.
- E.** M-DCPS is not responsible for loss of tools, equipment or supplies.
- F.** Site shall be left in a "broom clean" condition upon completion of work.

- G. Vendor shall not block exits, hallways, corridors, driveways, delivery areas, nor impede ingress or egress
- H. Vendor shall not impede nor interfere with the normal function of the facility, its occupants or its programs.

6.20 AWARDED BIDDER(S) AND MANUFACTURER RELATIONSHIP

- A. It is preferred that the Awarded bidder(s) have full access to the manufacturers they are offering for any and all items that may be needed to repair and restore the telephone systems to full operation meeting the manufacturer's specifications.
- B. It is preferred that the Awarded bidder(s) have full access to the manufacturer's engineering and technical support. This should include publications, technical notes from the field, and hardware upgrade kits and data and system software.
- C. It is preferred that the Awarded bidder(s) have full access to the manufacturer's technician and administrator training and uses this training to ensure that the Awarded bidder(s)'s staff maintains a current and high level of competency.
- D. All awarded bidder(s) may update their catalog offerings to: (a) add additional original equipment manufacturers (OEM's), upon prior approval of M-DCPS, and offer a discount percentage off the OEM's catalog listing or (b) offer additional discount percentages from the bidder(s) original bid submission, throughout the term period of the agreement. This will be accomplished by providing an updated excel spreadsheet to M-DCPS Procurement Management Services and shall be at the sole discretion of the District. At no time during the term of contract may discounts be decreased.
- E. It is preferred that all bidder(s) bidding on Avaya products be Platinum level certified by the manufacturer. Proof of such certification can be provided at the time of bid submittal. Failure to provide may deem your bid non-responsive.

6.21 REPORTING

Awarded bidder(s) must agree to meet at ITS or ITS designated location within the District's boundaries on a monthly basis and provide an electronic report in Microsoft Excel Spreadsheets, the format will be determined by M-DCPS Enterprise Service Management (ESM), that contains as a minimum but is not limited to the following information:

- A. Number of emergency, Time and Material and routine Service Calls per location
- B. Number of failures by generic type such as wiring, sets, type of circuit card, user problems and system administration
- C. Average repair response time by priority
- D. Average repair resolution time by priority
- E. Number of repeat visits
- F. Additionally, an electronic summary, as defined by M-DCPS, will be submitted on a weekly basis to the Director of ISS

The purpose of the meeting will be to discuss adherence to the SLA's, project status, AMC's, upcoming projects, and challenges with representatives of Enterprise Service Management (ESM), Network Support and Telecommunications/AMC, and Procurement Management.

6.22 ADDITIONAL WORK REQUESTED OF THE AWARDED BIDDER(S)

The Awarded bidder(s) will be requested to perform adds, moves, and changes of telephone sets and other

hardware / software and the administration of the system related to these activities. Materials will be priced in accordance with the catalog submitted by the bidder.

6.23 LIMITATION OF CONTRACTOR'S LIABILITIES

If the performance of any part of this contract by the contractor is prevented, hindered, delayed or otherwise made impracticable by reason of flood, riot, fire, explosion, war or any other casualty or any other cause of whatever nature that is beyond the control of the Contractor, the Contractor shall be excused from such performance during the continuance of any such happening or event, for as long as such event shall continue to prevent, hinder or delay such performance, provided that in the event of a lockout, or other disturbance, the Contractor shall provide the requirements of this contract using any personnel deemed necessary. This paragraph shall apply to the installation and warranty requirements of this Invitation to Bid (ITB).

6.24 TERMINATION OF CONTRACT

The following terms and conditions will govern the termination of the contract and the Awarded bidder(s) may be considered in default.

Should the Awarded bidder(s) fail or neglect to perform the work properly and diligently in accord and compliance with the schedules agreed upon by M-DCPS, or if the quality of service does not meet the requirements of M-DCPS, or the Awarded bidder(s) shall fail or refuse to perform any requirement or provision of the contract specified, then the Board shall notify the Awarded bidder(s) in writing, listing the specific items to be performed and the time in which performance is to be accomplished. If the Awarded bidder(s) does not perform within the time specified, the Board may terminate the contract pursuant to Article VI(E), Termination of Agreement, under Section 4 of this ITB.

6.25 ASSIGNMENT OF CONTRACT

The Awarded bidder(s) may not assign their rights under this contract without the prior written approval of the Board. However, no assignment shall relieve the Awarded bidder(s) of any of their obligations under this contract. The Awarded bidder(s) may not assign or transfer their performance obligations under this contract to any other individual, firm or corporation.

6.26 NOTICE

Any notice or communication between M-DCPS and the Awarded bidder(s) must be in writing and forwarded to the respective addresses that will be determined upon award of a contract.

6.27 DELIVERY/SHIPPING

All deliveries must be made within thirty (30) days after receipt of order. Prices quoted shall be F.O.B. destination Information Technology Services Annex (ITS), or as indicated on the purchase order. All items not furnished on the purchase order within the time specified may be cancelled, and/or the vendor may be defaulted and lose eligibility to transact new business as stipulated in the Instructions to Bidders. Delivery will be an important factor in evaluating vendor performance for the award of future orders. Please note that ISS warehouse receiving hours are Monday through Friday from 7:00 a.m. to 2:30 p.m. M-DCPS purchase order number must appear on all boxes, invoice and packing slips. Each shipping container/pallet must include its own itemized packing slip. Failure to include any of the above information may result in the shipment being rejected at vendor's expense.

6.28 WARRANTY

The warranty for equipment, after delivery and acceptance by the school or department, shall be for three (3) years, or manufacturer's warranty, whichever is greater. The successful vendor(s) will be responsible to repair or replace each unit during the warranty period, at no cost to the Board. If off-site repair is required,

the District requires a replacement during the time of the repair at no cost to M-DCPS. Vendor must be able to provide maintenance on equipment during and after initial warranty period and have sufficient parts on hand to effect immediate repair. M-DCPS personnel will assist the vendor in compiling the list of parts that are required to be maintained in inventory.

6.29 EQUIPMENT INSPECTION

Bidders desiring to inspect some typical M-DCPS equipment installations must contact Infrastructure Support Services (ISS), Supervisor Telecommunications: Telephone (305) 995-3924. Scheduling of visits to the various locations will be coordinated to ensure access and to minimize disruption at schools and other locations.

6.30 SUBSTITUTIONS/DISCONTINUED ITEMS

Awarded vendors may need to make substitution offerings to M-DCPS during the term of this contract. Awarded vendor(s) is/are required to notify Procurement Management Services and Enterprise Service Management (ESM) at least thirty (30) days prior to the effective discontinuation date, or within five (5) days after the awarded vendor(s) is/are notified by manufacturer of the discontinued item(s). The written notification must also state the substitution item that is being offered by the manufacturer. Each specification of the substituted item must meet or exceed those specifications in the bid for the awarded item(s). Awardee(s) is/are to submit complete descriptive literature. Failure to provide this information and notification within the timeframe stated above may result in awardee to be in non-compliance of contract and may result in default of contract. Items offered as substitutes **must be at the same or lower price as originally awarded.** M-DCPS reserves the right during this thirty (30) day advance notice period, to continue to order the item scheduled for discontinuation with the requirement that all such orders are filled as originally placed, at the same or lower price, prior to the substitution being offered to purchase the newer, submitted item. M-DCPS reserves the right to reject a substitution and require vendor(s) to re-submit another item supplied by the same manufacturer for substitution. If any awarded vendor(s) substitutes a product, without the requisite written authorization from the M-DCPS Procurement Management Department, the vendor(s) may be in default and lose eligibility to conduct business with the School Board.

6.31 PAYMENT

Payments shall be made after full acceptance by the ISS Project Manager of the turnkey system or items purchased.

Under certain circumstances, partial payment may be made on materials delivered to the intended site. The material received on site must be verified by the ISS project manager. The contractor assumes all responsibility for all materials delivered to the intended site. Total partial payment may not exceed 80% of the total quoted price for the materials, excluding labor. The remaining balance will be paid upon completion, inspection and final acceptance by the ITS ISS project manager.

MDCPS will not pay for travel time. Work found to be deficient will be corrected by the vendor at the vendor's expense prior to any payment being made. The vendor will not be compensated for waste and/or surplus materials. The vendor shall not be paid for any services which have not been authorized by the MDCPS authorized representative and not accompanied by an MDCPS purchase order.

In the event that the obligations and assets of the Contractor are merged or assumed by some other legal entity, the Contractor agrees to provide written notice to M-DCPS or its designee, and M-DCPS shall be given the right to allow the contract to continue under the new ownership or to terminate the contract without penalty. Such election shall be made at the sole discretion of M-DCPS.

6.32 INDULGENCE

Indulgence by M-DCPS of any nonconformance by the contractor does not constitute a waiver of any rights

under this agreement

6.33 REQUEST FOR QUOTATION PURCHASES

The awarded bidder shall be approved to participate in Request for Quotations (RFQ) as may be required by the District. The awarded bidder shall be invited to offer a firm-fixed price for item(s), as specified. These prices must remain firm-fixed for a minimum of 45 days as per the RFQ but **shall never exceed the bidder(s) submitted pricing under this ITB.**

6.34 ESTIMATED QUANTITIES

It is anticipated that the School Board of Miami-Dade County, Florida may require approximately 400 service calls utilizing this bid. This estimate is given only as a guideline for preparing the bid and should not be construed as representing any actual amount to be purchased under this contract.

6.35 PRICES

Prices shall be firm and fixed for the initial term of the contract. At the end of the initial contract period and every period thereafter, as the need arises as determined by M-DCPS, prices may be adjusted to establish current prices. The prices (Catalog Price Lists, Vendor Price lists, Hourly labor rates, etc.) may be increased or decreased (increases cannot exceed 3% or the latest issued Consumer Price Index by the U.S. Bureau of Labor & Statistics, whichever is lower). Primary vendor status will be re-evaluated, and vendors will be re-ranked according to the results of the price refresh.

If there is no price adjustment, written notification to Procurement Management shall not be necessary. If written notice is not received at the time the letter requesting intent to extend from the awardee is submitted, current prices shall remain in effect for that contract period. All price adjustments shall be subject to audit as to validity and accuracy at any time by school system personnel.

Catalog updates may be accepted at the time of contract extension. Discounts, as submitted with this bid, may increase but not decrease, at time of contract extension.

6.36 PRICE CHANGES

- A. Quantity Discounts: Awarded bidder(s) are urged to offer additional discounts during the RFQ process. The District may seek to negotiate additional price concessions on services offered under the Contract. M-DCPS staff, including Procurement Management Services shall document its files accordingly.
- B. Best Pricing Offer: During the contract term, if the District becomes aware of better pricing offered by the awarded bidder(s) for substantially the same or a smaller quantity of a service, outside the contract, due to market conditions, but upon the same terms of the contract, then at the discretion of the District, the price under the contract may be reduced to the lower price.
- C. Sales Promotions: In addition to decreasing prices for the balance of the contract term due to a change in market conditions, an awarded bidder(s) may conduct sales promotions involving price reductions for a specified lesser period. A contractor shall submit to District personnel documentation identifying the proposed (1) starting and ending dates of the promotion, (2) products involved, and (3) promotional prices compared to then-authorized prices. Promotional prices shall be available to all District customers. Upon approval, the awarded bidder(s) shall provide conspicuous notice of the promotion.

6.37 EQUIPMENT TRADE IN

The District may seek quotes for trade in allowance for systems or portions thereof being replaced by new purchases. Any trade in items would be in as is condition with no implied warranties.

6.38 NON-PERFORMANCE & NON-COMPLIANCE

Awarded contractor is required to provide satisfactory service levels at all times. Degraded performance and/or excessive equipment down time shall not be acceptable. Should a piece of equipment (a) continue to malfunction during the warranty period after repeated service calls, (b) require excessive amount of remedial maintenance, or (c) in the opinion of the District is not providing satisfactory performance the Contractor agrees to remove and/or replace the defective unit (District's choice) at no cost to the District. Replaced units shall be new and as per the original specifications or better if original unit is no longer available.

Failure to comply with above requirements may result in the contract supplier being found in default and unilateral cancellation of the contract by the District.

Awarded bidder(s) will be notified in writing, listing the specific areas of non-compliance and/or non-performance. If these are not corrected within the time specified, ESM may, without prejudice to other remedies they may have, apply penalty fees and/or take over the assigned work or such portion thereof as may be in default, and correct and make good the deficiencies.

In such case, the cost thereof, including compensation for supplementary services and expenses made necessary by such default, neglect or failure, may be deducted from any amount due or to become due the Awarded bidder(s) from M-DCPS. If payments then or thereafter due the Awarded bidder(s) are not sufficient to cover such amounts, the Awarded bidder(s) shall pay the difference to M-DCPS. Only one penalty will apply per trouble or AMC call.

The following situations are worthy of a NON-COMPLIANCE notification and penalty fee assessment:

NON-COMPLIANCE	PENALTY FEE
P1 Late Response as defined elsewhere in this Bid	\$100.00 per call
P2 Late Response defined elsewhere in this Bid	\$50.00 per call
Inappropriate or inadequate parts inventory, tools, equipment, software resulting in non-compliance with the expected Emergency (P1) and Non- Emergency (P2) service intervals as stipulated elsewhere in this Bid	\$100.00 per call
Damage to property, as defined elsewhere in this Bid	Repair costs as quoted by General Awarded bidder(s)
Deficient and defective workmanship that is not handled in accordance and as specified in this Bid,) or that does not adhere to requirements in the bid's boiler plate/instructions to bidders with respect to applicable codes, regulations, etc.	\$100.00 per incident
Failure to Safe Guard Passwords and/or Security Codes, as specified in this Bid.	\$500.00 per affected location

SECTION 7 - BID SUMMARY EXCEL SPREADSHEET

SPREADSHEET: Bidder **MUST** complete the attached Excel document with the corresponding prices as requested. Submit the completed Excel file in .xls (or similar type format) with your bid proposal response via the e-bidding platforms Periscope S2G or DemandStar. No handwritten Summary sheets will be accepted.

Tables 1-3 shall be firm-fixed rates inclusive of M-DCPS discounts.

Table 4 shall be an MSRP Discount off all manufacturer parts. Bidder(s) shall indicate the percent discount off the manufacturer's most recent published price list or catalog, no exceptions to this requirement will be accepted. A copy of the catalog or list must be supplied with this bid in an Excel format, stipulating the catalog pricing, itemized descriptions, parts/SKU numbers, units of measure, manufacturer price and M-DCPS price with catalog discount applied.

An updated pricing list from each awardee may be requested at the District's discretion to include new OEMs, products and services in the best interest of the District.

Table 5 shall be a cost-plus percentage over actual costs for materials and consumables. All materials utilized in the performance of this contract shall be charged to the District at cost plus a percentage mark-up from the bidder(s) actual costs. Please enter the percentage over costs that will be charged to the District.

The Bidder shall offer all the elements of this ITB and meet all service requirements and specifications listed within Section 6 – Scope of Work, including furnishing labor, supervision, and materials necessary for this work.

The information contained on this ITB is to be utilized solely for preparing the proposal response to this ITB and does not constitute a commitment by the District to procure any product in any volume.

SECTION 8 - FORMS AND ATTACHMENTS

Please fill out all attachments. Some attachments must be notarized.

ATTACHMENT 1	COVER PAGE
ATTACHMENT 2	MAILING LABEL
ATTACHMENT 3	STATEMENT OF "NO BID"
ATTACHMENT 4	ACKNOWLEDGEMENT OF AMENDMENTS
ATTACHMENT 5	CONFLICT OF INTEREST
ATTACHMENT 6	DEBARMENT
ATTACHMENT 7	INSTRUCTIONS
ATTACHMENT 8	BIDDER'S PREFERENCE
ATTACHMENT 9	DRUG-FREE WORKPLACE (must be notarized)
ATTACHMENT 10	LOCAL BUSINESS AFFIDAVIT OF ELIGIBILITY (must be notarized)
ATTACHMENT 11	ANTI-COLLUSION STATEMENT
ATTACHMENT 12	BIDDER EXPERIENCE
ATTACHMENT 13	SUBMITTED BID DOCUMENT VERIFICATION FORM
ATTACHMENT 14	PROPOSAL SUBMITTAL RECEIPT FORM
ATTACHMENT 15	FLORIDA STATUTES ON PUBLIC ENTITY CRIMES
ATTACHMENT 16	BID OPENING INSTRUCTIONS
ATTACHMENT 17	REGISTRATION INSTRUCTIONS FOR PERISCOPE S2G AND DEMANDSTAR

ATTACHMENT 1 – COVER PAGE

Cover Page for Bid

BIDDER'S NAME (Name of firm, entity or organization):		
FEDERAL EMPLOYER IDENTIFICATION NUMBER:		
NAME AND TITLE OF BIDDER'S CONTACT PERSON:		
Name: _____		Title: _____
MAILING ADDRESS:		
Street Address: _____		
City, State, Zip: _____		
TELEPHONE: (____) _____	FAX: (____) _____	E-MAIL ADDRESS: _____
BIDDER'S ORGANIZATIONAL STRUCTURE:		
____ Corporation ____ Partnership ____ Proprietorship ____ Joint Venture		
____ Other (Explain): _____		
IF CORPORATION,		
Date Incorporated/Organized: _____		
State Incorporated/Organized: _____		
States registered in as foreign corporation: _____		
BIDDER'S SERVICE OR BUSINESS ACTIVITIES OTHER THAN WHAT THIS SOLICITATION REQUESTS FOR:		
LIST NAMES OF BIDDER'S SUBCONTRACTORS OR SUBCONSULTANTS FOR THIS PROJECT:		
BIDDER'S AUTHORIZED SIGNATURE		
The undersigned hereby certifies that this bid is submitted in response to this solicitation.		
Signed By: _____		Date: _____
Print Name: _____		Title: _____

ATTACHMENT 2 - MAILING LABEL

Please print the mailing label below and affix to your bid package to ease identification when MDCPS receives your bid. Affix the mailing label below on the outside of your package even if you are utilizing UPS, FedEx or another carrier who prints the address information.



SEALED PROPOSAL ENCLOSED

(To be opened by the Contact Person noted below)

Bidder's Name:
Bidder's Address:
Bidder's Telephone Number:

BID BOX

Miami-Dade County Public Schools
Procurement Management Services
Attn: Delvin Padilla
1450 NE 2nd Ave
Miami, FL 33132

ITB No.: ITB-20-033-DP
ITB Title: Telephone Equipment and Repair
Proposal Due Date: Tuesday, May 4, 2021 by 1 p.m. EST

ATTACHMENT 3 - STATEMENT OF “NO BID”

If your company shall not be submitting a bid in response to this Invitation to Bid, please complete this Statement of “No Bid” sheet and return, prior to the Bid Due Date established within, to dpadilla@dadeschools.net or mail to:

The School Board of Miami-Dade County, Florida
Procurement Management Services
1450 NE 2nd Avenue, Miami, Florida 33132
Attn: Delvin Padilla

This information shall help MDCPS in the preparation of future Bids.

Company Name: _____

Contact: _____

Address: _____

Telephone: _____ Email: _____

√	Reasons for “No Bid”:
	Unable to comply with product or service specifications.
	Unable to comply with scope of work.
	Unable to quote on all items in the group.
	Insufficient time to respond to the Invitation to Bid.
	Unable to hold prices firm through the term of the contract period.
	Our schedule would not permit us to perform.
	Unable to meet delivery requirements.
	Unable to meet bond requirements.
	Unable to meet insurance requirements.
	Other (Specify below)

Comments: _____

Signature: _____

ATTACHMENT 4 - ACKNOWLEDGEMENT OF AMENDMENTS

Instructions: Complete Part I or Part II, whichever is applicable.

PART I: Listed below are the dates of issue for each addendum received in connection with this solicitation.

Please include a signed copy of each addendum.

Addendum #1, Dated _____, 20__

Addendum #2, Dated _____, 20__

Addendum #3, Dated _____, 20__

Addendum #4, Dated _____, 20__

Addendum #5, Dated _____, 20__

Addendum #6, Dated _____, 20__

Addendum #7, Dated _____, 20__

Addendum #8, Dated _____, 20__

PART II:

☐ No Addendum was received in connection with this solicitation.

Authorized Signature: _____ Date: _____

Print Name: _____ Title: _____

Federal Employer Identification Number: _____

Firm Name: _____

Address: _____

City/State/Zip: _____

Telephone: _____ Fax: _____

ATTACHMENT 5 - CONFLICT OF INTEREST

DISCLOSURE OF POTENTIAL CONFLICT OF INTEREST AND CONFLICTING EMPLOYMENT OR CONTRACTUAL RELATIONSHIP

MUST BE COMPLETED BY ALL BIDDERS AND SUBMITTED WITH THEIR BID TO BE CONSIDERED FOR AWARD

VENDOR NAME:

In accordance with General Condition 11, each Bidder must disclose in its Bid, the names of any employees who are employed by Bidder who are also an employee of MDCPS. Persons identified below may have obligations and restrictions applicable to them under Chapter 112, Florida Statutes.

Name of Bidder's Employee	MDCPS Title or Position of Employee	MDCPS Department/School of Bidder's Employee
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

Check one of the following and sign:

- ☐ I hereby affirm that there are no known persons employed by Bidder who are also an employee of MDCPS.
- ☐ I hereby affirm that all known persons who are employed by Bidder who are also an employee of MDCPS have been identified above.

Signature

Printed Name

ATTACHMENT 6 - DEBARMENT

CERTIFICATION OF DEBARMENT, SUSPENSION, INELIGIBILITY AND VOLUNTARY EXCLUSION LOWER TIER TRANSACTIONS

MUST BE COMPLETED BY ALL BIDDERS AND SUBMITTED WITH THEIR BID TO BE CONSIDERED FOR AWARD

This certification is required by the regulations implementing Executive Order 12549, Debarment and Suspension, 45 CFR 1183.35, Participants' responsibilities. The regulations were published as Part VII of the May 26, 1988 Federal Register (pages 19160-19211). Copies of the regulations may be obtained by going to this link: <http://www.gpo.gov/fdsys/granule/CFR-2011-title45-vol3/CFR-2011-title45-vol3-sec1183-35>

(BEFORE COMPLETING CERTIFICATION, READ INSTRUCTIONS ON THE NEXT PAGE)

- (1) The prospective lower tier participant certifies, by submission of this proposal, that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction by any federal department or agency.
- (2) Where the prospective lower tier participant is unable to certify to any of the statements in this certification, such prospective participant shall attach an explanation to this proposal.

Organization Name

Name(s)

Title(s) of Authorized Representative(s)

Signature(s)

Date

ATTACHMENT 7 - INSTRUCTIONS

INSTRUCTIONS FOR CERTIFICATION

1. By signing and submitting this proposal, the prospective lower tier participant is providing the certification set out below.
2. The certification in this clause is a material representation of fact upon which reliance was placed when this transaction was entered into. If it is later determined that the prospective lower tier participant knowingly rendered an erroneous certification, in addition to other remedies available to the federal government, the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.
3. The prospective lower tier participant shall provide immediate written notice to the person to which this proposal is submitted if at any time the prospective lower tier participant learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
4. The terms "covered transaction," "debarred," "suspended," "ineligible," "lower tier covered transaction," "participant," "person," "primary covered transaction," "principal," "proposal," and "voluntarily excluded," as used in this clause, have the meanings set out in the Definitions and Coverage sections of rules implementing Executive Order 12549. You may contact the person to which this proposal is submitted for assistance in obtaining a copy of those regulations.
5. The prospective lower tier participant agrees by submitting this proposal that, should the proposed covered transaction be entered into, it shall not knowingly enter into any lower tier covered transaction with a person who is debarred, suspended, declared ineligible, or voluntarily excluded from participation in this covered transaction, unless authorized by the department or agency with which this transaction originated.
6. The prospective lower tier participant further agrees by submitting this proposal that it will include the clause titled "Certification Regarding Debarment, Suspension, Ineligibility, and Voluntary Exclusion-Lower Tier Covered Transactions," without modification, in all lower tier covered transactions and in all solicitations for lower tier covered transactions.
7. A participant in a covered transaction may rely upon a certification of a prospective participant in a lower tier covered transaction that it is not debarred, suspended, ineligible, or voluntarily excluded from the covered transaction, unless it knows that the certification is erroneous. A participant may decide the method and frequency by which it determines the eligibility of its principals. Each participant may, but is not required to, check the Non-procurement List (Telephone Number).
8. Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render in good faith the certification required by this clause. The knowledge and information of a participant is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
9. Except for transactions authorized under paragraph 5 of these instructions, if a participant in a covered transaction knowingly enters into a lower tier covered transaction with a person who is suspended, debarred, ineligible, or voluntarily excluded from participation in this transaction, in addition to other remedies available to the federal government, the department or agency with which this transaction originated may pursue available remedies, including suspension and/or debarment.

ATTACHMENT 8 - BIDDER'S PREFERENCE

LEGAL OPINION OF BIDDER'S PREFERENCE

MUST BE COMPLETED BY ALL BIDDERS AND SUBMITTED WITH THEIR BID TO BE CONSIDERED FOR AWARD

VENDOR NAME:

Section 1: Attorney for an Out-of-State Bidder must complete and sign Section 1

Section 2: Florida Bidder must complete and sign Section 2 and have it notarized

NOTICE: The State of Florida provides a Bidder's preference for Bidders whose principal place of business is within the State of Florida for the purchase of personal property. The local preference is five (5) percent. Bidders whose principal place of business is outside the State of Florida must have an Attorney, licensed to practice law in the out-of-state jurisdiction, as required by Florida Statute 287.084(2), execute the "Opinion of Out-of-State Bidder's Attorney on Bidding Preferences" form and must submit this form with submitted bid. Such opinion should permit MDCPS's reliance on such attorney's opinion for purposes of complying with Florida Statute 287.084.

Florida Bidders are not required to have an Attorney render an opinion but the Florida Bidder must complete its portion of this form.

Failure to submit and execute this form, with bid, shall result in bid being considered "non-responsive" and bid rejected.

SECTION 1

LEGAL OPINION ABOUT OUT-OF-STATE BIDDING PREFERENCES

(Must Select One)

_____ The Bidder's principal place of business is in the State of _____ and it is my legal opinion that the laws of that state **do not grant a preference** in the letting of any or all public contracts to business entities whose principal places of business are in that state.

_____ The Bidder's principal place of business is in the State of _____ and it is my legal opinion that the laws of that state **grant the following preference(s)** in the letting of any or all public contracts to business entities whose principal places of business are in that state: [Please describe applicable preference(s) and identify applicable state law(s)]:

The undersigned attorney submits the foregoing opinions with the intention that they be relied upon by The School Board of Miami-Dade County, Florida in the letting of public contracts

Signature of out-of-state Bidder's attorney: _____

Printed name of out-of-state Bidder's attorney: _____

Address out-of-state Bidder's attorney: _____

Telephone number out-of-state Bidder's attorney: _____

E-Mail address out-of-state Bidder's attorney: _____

Attorney's state(s) of bar admission: _____

SECTION 2

LEGAL OPINION ABOUT POLITICAL SUBDIVISION BIDDING PREFERENCES FOR A FLORIDA BIDDER ONLY - FLORIDA BIDDER MUST COMPLETE AND SIGN THIS SECTION AND HAVE IT NOTARIZED **ATTORNEY'S OPINION AND SIGNATURE NOT REQUIRED FOR FLORIDA BIDDERS**

(Must Select One)

_____ The Bidder's principal place of business is in the political subdivision of Miami-Dade County, Florida.

_____ The Bidder's principal place of business is in the political subdivision of _____ and it is my legal opinion that the laws of that political subdivision **do not grant a preference** in the letting of any or all public contracts to business entities whose principal places of business are in that political division.

_____ The Bidder's principal place of business is in the political subdivision of _____ and it is my legal opinion that the laws of that political subdivision **grant the following preference(s)** in the letting of any or all public contracts to business entities whose principal places of business are in that political subdivision: [Please describe applicable preference(s) and identify applicable authority granting the preference(s)]: _____

STATE OF FLORIDA
COUNTY OF _____

BEFORE ME; the undersigned authority, in _____ and for the State of Florida, personally appeared _____ who, after being sworn according to law, stated that he or she was authorized to represent _____ and to execute this affidavit on behalf of the said Business Entity and attests, under penalty of perjury, to the above.

SIGNATURE OF AFFIANT

DATE

PRINTED NAME OF AFFIANT

TITLE

COMPANY NAME

SWORN AND SUBSCRIBED BEFORE ME

SIGNATURE OF NOTARY PUBLIC
THIS _____ DAY OF _____, 20____

My Commission Expires: _____
NOTARY SEAL

ATTACHMENT 9 - DRUG-FREE WORKPLACE

VENDOR NAME:

SWORN STATEMENT PURSUANT TO SECTION 287.087, FLORIDA STATUTES, AS CURRENTLY ENACTED OR AS AMENDED FROM TIME TO TIME, ON PREFERENCE TO BUSINESSES WITH DRUG-FREE WORKPLACE PROGRAMS.

THIS FORM MUST BE SIGNED AND SWORN TO IN THE PRESENCE OF A NOTARY PUBLIC OR OTHER OFFICIAL AUTHORIZED TO ADMINISTER OATHS.

This sworn statement is submitted to The School Board of Miami-Dade County, Florida,

by _____
(Print individual's name and title)

for _____
(Print name of entity submitting sworn statement)

whose business address is _____

and (if applicable) its Federal Employer Identification Number (FEIN) is _____
(If the entity has no FEIN, include the Social Security Number of the individual signing this sworn statement: _____.)

I certify that I have established a drug-free workplace program and have complied with the following:

1. Published a statement notifying employees that the unlawful manufacture, distribution, dispensing, possession, or use of a controlled substance is prohibited in the workplace and specifying the actions that shall be taken against employees for violations of such prohibition.
2. Informed employees about the dangers of drug abuse in the workplace, the business' policy of maintaining a drug-free workplace, any available drug counseling, rehabilitation and employee assistance programs, and the penalties that may be imposed upon employees for drug abuse violations.
3. Given each employee engaged in providing the commodities or contractual services that are under bid a copy of the statement specified in subsection (1).
4. In the statement specified in subsection (1), notified the employees that, as a condition of working on the commodities or contractual services that are under bid, the employee shall abide by the terms of the statement and shall notify the employer of any conviction of, or plea of guilty or nolo contendere to, any violation of chapter 893 or of any controlled substance law of the United States or any state, for a violation occurring in the workplace no later than five days after such conviction.
5. Shall impose a sanction on, or require the satisfactory participation in a drug abuse assistance or rehabilitation program if such is available in the employee's community by, any employee who is so convicted.
6. Am making a good faith effort to continue to maintain a drug free workplace through implementation of this section.

(Signature)

Sworn to and subscribed before me this _____ day of _____, 20____.

Personally known _____ or _____

Produced Identification _____

Notary Public – State of _____

My commission expires: _____

(Type of Identification)



ATTACHMENT 10 - LOCAL BUSINESS AFFIDAVIT OF ELIGIBILITY

Miami-Dade County Public Schools Local Business Affidavit of Eligibility

This declaration is executed under penalty of perjury of the laws of the United States and State of Florida.

THIS AFFIDAVIT IS SUBMITTED IN REFERENCE TO THE FOLLOWING SOLICITATION:	
RFQ/RFP/BID/CONTRACT/PROJECT # (as applicable): _____	
BUSINESS NAME:	_____
CONTACT PERSON:	_____
LOCAL ADDRESS: (Include City State & Zip Code)	_____
FEIN (Federal Employer Identification Number):	Length of Time at Address Provided: _____
	Length of Time Located within the legal boundaries of Miami-Dade County: _____
BUSINESS STRUCTURE:	☐ Corporation ☐ LLC ☐ Partnership ☐ Sole Proprietorship ☐ Other (Specify): _____
PHONE:	() FAX: ()
E-MAIL ADDRESS:	_____
ATTESTATION - I understand that: - In accordance with School Board Policy 6320.05, local business means the Bidder has a valid business license, issued by a jurisdiction located in Miami-Dade County, with its headquarters, manufacturing facility, or locally-owned franchise located within the legal boundaries of Miami-Dade County, for at least twelve (12) months (or having a street address for at least twenty-four (24) months), prior to the bid or proposal opening date. Post office boxes are not verifiable and shall not be used for the purpose of establishing said physical address. - To be considered for local preference, a Bidder must attach a copy of its business license (Local Business Tax Receipt) to this affidavit of eligibility with a bid or proposal. - The preference does not apply to goods or services exempted by statute as reflected in Policy 6320, or prohibited by Federal or State law, or other funding source restrictions. - The application of local preference to a particular purchase, contract, or category of contracts for which the Board is awarding authority may be waived upon written justification and recommendation by the Superintendent. - The preference established in this policy does not prohibit the right of the Board, or other authorized purchasing authority, from giving preference permitted by law in addition to the preference authorized in this policy. - The preference established in this policy does not prohibit the right of the Board, or other authorized purchasing authority, to compare quality or fitness for use of supplies, materials, equipment and services proposed for purchase and compare qualifications, character, responsibility and fitness of all persons, firms or corporations submitting bids or proposals. - The above information may be subject to verification. - A Bidder who misrepresents the local preference status of its firm in a proposal or bid submitted to the School Board will lose the privilege to claim local preference status, and shall lose eligibility to claim local preference status for a period of one (1) year. The Superintendent may also recommend that the firm be referred for debarment in accordance with Policy 6320.04.	

BEFORE ME; the undersigned authority, in and for the State of Florida and Miami-Dade County personally appeared _____ who, after being sworn according to law, stated that he or she was authorized to represent _____ and to execute this affidavit on behalf of the said Business Entity and attests, under penalty of perjury, to the above.

SWORN AND SUBSCRIBED BEFORE ME

SIGNATURE OF NOTARY PUBLIC
THIS _____ DAY OF _____, 20____

My Commission Expires: _____
NOTARY SEAL

PRINTED NAME OF AFFIANT

SIGNATURE OF AFFIANT DATE

TITLE

COMPANY NAME

ATTACHMENT 11 - ANTI-COLLUSION STATEMENT

THE UNDERSIGNED BIDDER HAS NOT DIVULGED TO, DISCUSSED, OR COMPARED HIS/HER PROPOSAL WITH OTHER BIDDERS AND HAS NOT COLLUDED WITH ANY OTHER BIDDER OR PARTIES TO THE PROPOSAL WHATSOEVER. BIDDER ACKNOWLEDGES THAT ALL INFORMATION CONTAINED HEREIN IS PART OF THE PUBLIC DOMAIN AS DEFINED BY THE STATE OF FLORIDA SUNSHINE LAW.

CERTIFICATION AND IDENTIFICATION FOR BIDDERS SUBMITTING PROPOSALS

I certify that this proposal is made without prior understanding, agreement or connection with any corporation, firm or person submitting a proposal for the same service, and is in all respects fair and without collusion or fraud. I agree to abide by all conditions of these proposal specifications and I certify that I am authorized to sign this proposal. I certify agreement with The School Board of Miami-Dade County, Florida Business Code of Ethics and agree to comply with this Code and all applicable School Board contracting and procurement policies and procedures (School Board Policy 6460). I certify that I, nor my company or its principals, or any wholly-owned subsidiary are currently debarred or in default of any bid, purchase order or contract with the School Board or any other private or governmental entity and that the company satisfies all necessary requirements as an entity to do business with The School Board of Miami-Dade County, Florida.

Type of Business Organization and Authority of Signatory:

Indicate type of business organization Bidder is registered as with the Florida Department of State Division of Corporations. For example, Partnership, Limited Partnership, Limited Liability Company, Corporation, etc. If a proposal is submitted by a corporation, provide documentation that the corporation is active and authorized to do business in the State of Florida, and that its corporate status shall remain active and unchanged at the time of award or proposal. As to other types of business organizations, please provide any and all documentation relating thereto, including without limitation, verification that the party signing this proposal is fully authorized and empowered to do so, on behalf of Bidder. In addition, set forth name(s) and title of any and all parties who are authorized to contract on behalf of Bidder.

LEGAL NAME OF AGENCY OR
BIDDER SUBMITTING PROPOSAL: _____

MAILING ADDRESS: _____

CITY STATE, ZIP CODE: _____

TELEPHONE NUMBER: _____

TYPE OF BUSINESS ORGANIZATION: _____

EMAIL ADDRESS: _____

BY: SIGNATURE (ORIGINAL) _____

BY: NAME TYPED _____

TITLE: _____

Revised 11/19/20

ATTACHMENT 12 – BIDDER EXPERIENCE

Submit three (3) forms; one for each client reference. Understand that each client may be contacted to verify the validity of the partnership between the Bidder and the client.

BIDDER REFERENCE EVALUATION FORM

Bidder Name:

Bid Number:

Bid Title:

**Name of Organization
Providing Reference:**

Contact Person:

Date of Evaluation:

Email:

**PLEASE CHECK THE APPROPRIATE STATEMENT THAT BEST DESCRIBES YOUR CLIENT
EXPERIENCE WITH THE ABOVE REFERENCE BIDDER.**

I. DELIVERY

☐

- ____ Vendor was always on time
____ Vendor was usually on time
____ Vendor was never on time
____ Vendor never delivered product/service as ordered
____ Vendor defaulted

II. PRODUCT QUALITY

☐

- ____ Vendor's product/service always performed as expected
____ Vendor's product/service usually performed as expected
____ Vendor's product/service never performed as expected
____ Vendor's product had to be replaced
____ OTHER: COMMENTS

III. PRODUCT SUBSTITUTION

☐

- ____ Vendor always substituted product/service
____ Vendor never substituted product/service
____ OTHER: COMMENTS

IV. PACKAGING

☐

- ____ Vendor's packaging was always satisfactory
____ Vendor's packaging was usually satisfactory
____ Vendor's packaging was sometimes satisfactory
____ Vendor's packaging was never satisfactory
____ OTHER: COMMENTS

V. INVOICING

☐

- ____ Vendor always invoiced correctly and on time
____ Vendor usually invoiced correctly and on time
____ Vendor sometimes invoiced correctly and on time
____ Vendor never invoiced correctly and on time
____ OTHER: COMMENTS

VI. PROFESSIONALISM

☐

- ____ Vendor was always professional
____ Vendor was usually professional
____ Vendor was sometimes professional
____ Vendor's product had to be replaced
____ OTHER: COMMENTS

VII. ACCESSIBILITY

☐

- ____ Vendor was always accessible
____ Vendor was usually accessible
____ Vendor was sometimes accessible
____ Vendor never accessible
____ OTHER: COMMENTS

VIII. OVERALL RATING

- Recommend for new business ☐
Does not recommend for new business ☐

OVERALL STATEMENT OF VENDOR'S PERFORMANCE

CLIENT'S NAME: _____

SIGNATURE: _____ DATE: _____

VERIFIED BY: (PRINT NAME) _____ SIGNATURE: _____ DATE: _____

Revised 11/19/20

ATTACHMENT 13 - SUBMITTED BID DOCUMENT VERIFICATION FORM

All bidders are required to submit the following information to be considered for award. Failure to submit any of the required documents with the bid will cause the bidder to be considered nonresponsive and ineligible for further consideration. Each bidder must include the following information within their submittal:

REQUIREMENT	YES	NO	N/A
a. A Local Business Tax Receipt. Any person, firm, corporation or joint venture, with a business location in Florida, shall meet the County's Local Business Tax Receipt requirements. Bidders with a location outside of Florida shall meet their local Occupational Tax requirements. A copy of the license must be submitted. If your local government does not require a business license/tax receipt, please mark "N/A" as your response. Noncompliance with this condition may cause the bidder not to be considered for award.	☐	☐	☐
b. Copy of current registration with the Florida Dept. of State, Division of Corporations (Sunbiz) to conduct business in the State of Florida; or company's certificate of good standing from applicable home state.	☐	☐	
c. Three (3) references, preferably from organizations comparable in complexity and/or size to M-DCPS. This must be documented on Attachment 12 - Bidder Experience Form, whereby each bidder uses one form per reference.	☐	☐	
d. Manufacturer's certification or authorization, pursuant to Section 6.2 B of this solicitation.	☐	☐	
e. Submission of all documentation/information stated in this ITB, including, without limitation, the documentation, information, and/or plans stated in Sections 5, 6.1A, 6.2, and 7 of this ITB, as well as the required forms and attachments, as stated in Section 8	☐	☐	

Please complete and sign below confirming all items noted above are included in your submission.

Name of Bidder: _____

Signature of Bidder's Authorized Representative

Date

Printed Name

Title

For Internal Use Only:

Signature of Originating Department (as applicable)

Date

Printed Name

Title

Procurement Staff Name/Signature

Date

ATTACHMENT 14 - PROPOSAL SUBMITTAL RECEIPT FORM

All Bidders MUST adhere to the guidelines stated in the Instructions to Bidders. As such, all bidders will sign and acknowledge timely submittal of this ITB, as well as Procurement Management Services Staff. This form must be included within the timely bid package. **Please complete the following form and attach the form to the outside of your firm's bid response.**

ITB Name and Number:	ITB-20-033-DP Telephone Equipment and Repair
ITB Due Date:	Tuesday, May 4, 2021 by 1:00 p.m. ET
Bidder's Name	
Business Address	
Bidder's Date and Time of Submission:	
Authorized Bidder's Signature:	
Procurement Management Staff Name and Signature:	
Verify Date and Time of Bidder's Submission:	

ATTACHMENT 15 - FLORIDA STATUTES ON PUBLIC ENTITY CRIMES AFFIDAVIT

The State of Florida has enacted a law that requires proposers or contractors to submit a sworn document stating whether or not a corporation, its officers, predecessors or successors have been convicted of a public entity crime. Neither the Proposer, the contractor nor any officer, director, executive, partner, shareholder, employee, member nor agent who is active in the management of the Proposer or contractor nor any affiliate of the Proposer or contractor shall have been convicted of a public entity crime subsequent to July 1, 1989.

All Proposers must read and complete in its entirety, sign and have notarized the attached "Sworn Statement under Section 287.133 (3) (a), Florida Statutes, on Public Entity Crimes."

Failure to do so will result in the proposal submitted being considered non-responsive and therefore not considered for award.

ITB or Contract No. _____

SWORN STATEMENT UNDER SECTION 287.133 (3) (A),
FLORIDA STATUTES, ON PUBLIC ENTITY CRIMES

STATE OF _____
COUNTY OF _____

Before me, the undersigned authority, personally appeared _____ who, being by me first duly sworn, made the following statement:

1. The business addresses of _____ (name of proposer or contractor) is _____.
2. My relationship to _____ (name of proposer or contractor) is _____ (relationship such as sole proprietor, partner, president, vice president).
3. I understand that a public entity as defined in Section 287.133 of the Florida Statutes includes a violation of any state or federal law by a person with respect to and directly related to the transaction of business with any public entity in Florida or with an agency or political subdivision of any other state or with the United States, including, but not limited to, any bid or contract for goods or services to be provided to any public entity or such an agency or political subdivision and involving antitrust, fraud, theft, bribery, collusion, racketeering conspiracy, or material misrepresentation.
4. I understand that "convicted" or "conviction" is defined by the statute to mean a finding or a conviction of a public entity crime with or without an adjudication of guilt, in any federal or state trial court of record relating to charges brought by indictment or information after July, 1989, as a result of a jury verdict, non-jury trial, or entry plea of guilty or nolo contendere.

5. I understand that "affiliate" is defined by the statute to mean (1) a predecessor or successor of a person or a corporation convicted of a public entity crime, or (2) an entity under the control of any natural person who is active in the management of the entity and who has been convicted of a public entity crime, or (3) those officers, directors, executives, partners, shareholders, employees, members, and agents who are active in the management of an affiliate, or (4) a person or corporation who knowingly entered into a joint venture with a person who has been convicted of a public entity crime in Florida during the preceding 36 months.
6. Neither the Proposer, contractor nor any officer, director, executive, partner, shareholder, employee, member nor agent who is active in the management of the Proposer or contractor nor any affiliate of the Proposer or contractor has been convicted of a public entity crime.

(Draw a line through paragraph 6 if paragraph 7 below applies)

7. There has been a conviction of a public entity crime by the Proposer or contractor, or an officer, director, executive, partner, shareholder, employee, member or agent of the Proposer or contractor, or an officer, director, executive, partner, shareholder, employee, member or agent of the Proposer or contractor who is active in the management of the Proposer or contractor or an affiliate of the Proposer or contractor. A determination has been made pursuant to Section 287.133 (3) by order of the Division or Administrative Hearings that it is not in the public interest for the name of the convicted person or affiliate to appear on the convicted Proposer list. The name of the convicted person or affiliate is _____. A copy of the order of the Division of Administrative Hearing is attached to this statement.

Affiant's Signature

Sworn to and subscribed before me in the state and county first mentioned above on the _____ day of _____, 20____.

NOTARY PUBLIC

MY COMMISSION EXPIRES

ATTACHMENT 16 - BID OPENING INSTRUCTIONS

ITB-20-033-DP TELEPHONE EQUIPMENT AND REPAIR

BIDS DUE: Sealed bids will be received by The School Board of Miami-Dade County, Florida until **1:00 P.M. local time, on Tuesday, May 4, 2021 at the MDCPS School Administration Building located at 1450 NE 2nd Ave, Miami, FL 33132**, in a main sealed envelope or container (box), and via the e-bidding platforms Periscope S2G or DemandStar.

For bid submittal requirements or instructions, please refer to **Section 5.3** of this ITB.

INSTRUCTIONS: Bidders can drop off their bids at the bid box at the 2nd Avenue entrance to the MDCPS School Board Administration Building. Bidders should place security badge on the outside of their bid submissions. A picture ID is required to enter the premises.

The bid opening will take place virtually via Zoom.

Tuesday, May 4, 2021 at 2:00 p.m. ET
Meeting ID: 963 8325 8347
Passcode: 978824
One tap mobile
+16468769923,,96383258347# US (New York)
+13017158592,,96383258347# US (Germantown)

SPECIAL INSTRUCTIONS: Bidders are required to practice social distancing guidelines when visiting the School Board Administration Building or any other MDCPS site.

- ❖ Bidders will not be allowed on site without a face mask.
- ❖ Bidders will not be allowed to congregate.
- ❖ Bidders must stay 6 feet apart from others.
- ❖ Please only have 1 representative from your firm drop off the bid.

Should you have any trouble locating the site please call (305) 995-4288.

ATTACHMENT 17 –REGISTRATION INSTRUCTIONS

PERISCOPE S2G REGISTRATION INSTRUCTIONS:

To register for free as a vendor in the Periscope S2G system (previously known as BidSync), you must complete the registration form. Once your application has been submitted, the activation process may take up to 24 hours.

1. Navigate to the Periscope S2G page by going to:

<https://prod.bidsync.com/miami-dade-county-public-schools>

2. Click on **Register For Free**.
3. On the **Account Information** page, fill in your **E-mail address**. The system will determine if this email address is already associated with an existing account.
4. Once your email address is confirmed as **not** already registered, enter in the rest of your user information.
5. Enter in demographic information and check the box indicating agreement and understanding to the Terms and Conditions of use.
6. An email is sent with a link to verify your email address and begin setting up your business profile.
7. If you need to have your account confirmed immediately, or if you need further assistance, please contact Periscope S2G Support at (800) 990-9339.

DEMANDSTAR REGISTRATION INSTRUCTIONS:

To register for free as a vendor in the DemandStar Platform, you must complete the registration form.

1. Navigate to the DemandStar page by going to:

<https://www.demandstar.com/app/registration>.

2. On the **Get Started! Create your free DemandStar account** page, fill in your **E-mail address** and your **Company Name**.
3. Read and accept the Terms of Use and Privacy Policy.
4. Choose your Free Agency: Please type **Miami-Dade County Public Schools** and select it, click next.
5. Input your Company Contact Information and click Submit.
6. Input your Contact Information and click Submit.
7. An email will be sent for you to confirm your account.
8. If you need further assistance, please contact DemandStar Support at support@demandstar.com or call (206) 940-0305